

Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962

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State of Tamilnadu- Act

Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962

TAMILNADU

India

Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962

Act 836 of 1962

Published on 9 September 1962

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Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962

Published vide Notification No. G.O. No. 3637, Revenue, dated 9th September 1962-SRO No.A-836 of 1962)

Notification No. G.O. No. 3637, Revenue, dated 9th September 1962-SRO No.A-836 of 1962). - In exercise of the powers conferred by section 110 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), the Governor of Tamil Nadu hereby makes the following rules:-

1.

Short title.

- These Rules may be called the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962.

2.

Definitions.

- In these Rules, unless the context otherwise requires,-

(a)

["Act" means the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

), as modified by the Tamil Nadu Land Reforms (Reduction of Ceiling on Land) Act, 1970 (Tamil Nadu Act 17 of 1970);]

[Substituted by G. O. Ms. No. 2828, dated the 7th September 1970.]

(b)

"authorized agent" means-

(i)

a person holding a power-of-attorney authorizing him to act on behalf of his principal; or

(ii)

an agent empowered by written authority under the hand of his principal;

(c)

"Form" means a Form appended to these Rules;

(d)

"section" means a section of the Act.

3.

Decision of question whether a person is a member of the Armed Forces.

(1)

Where the authorized officer feels doubtful whether a person is a member of the Armed Forces or not, he shall refer the question to the Government through the Land Commissioner, for decision under the proviso to section 3(29).

(2)

The Government shall, before deciding that the person concerned is not a member of the Armed Forces, give him an opportunity of making representation in writing.

(3)

The decision of the Government shall be communicated to the person concerned.

4.

[
[Substituted by G. O. Ms. No. 2828. dated the 7th September 1970.]

The notification specified in clause (31) of section 3 shall, besides being published in the [Fort St. George Gazette,] be published in the following manner, namely:-

(i)

publication in the District Gazette and in such local dailies and other journals, as the Government may think fit;

(ii)

affixture on the notice boards of the offices of the [District Collectors, Revenue Divisional Officers, Authorized Officers, Tahsildars, Panchayat Union Councils, and Panchayats]

[The words 'panchayat union councils and panchayats ' were substituted by G. O. Ms. No. 1389, dated 24th March 1973.]

;

(iii)

beat of tom-tom in the villages.]

5.

Form of return under section 8(1).

- The return to be furnished to the authorised officer under section 8(1) shall be in Form 2.

5A.

[Manner of giving reasonable opportunity under the proviso to Explanation III to section 8(1).

[Inserted by G. O. Ms. No. 2377, dated the 22nd September 1964.]

(1)

On receipt of a return in Form 2 furnished by a person in management of a family or of the property of such family under Explanation III to section 8 (1), the authorized officer shall issue a notice in Form 2-A to the other members of the family,

calling upon them to make their representations and adduce evidence, if any, in respect of such return on a date specified in the notice.

(2)

If any member of the family to whom a notice has been issued under sub-rule (1), applies for a copy of the return referred to, it shall be furnished to him free of cost.]

6.

Mode of furnishing return in Form 2,16 or 17.

- The return in Form 2,16 or 17 shall be furnished either,-

(i)

by presenting it in person or by agent, to the authorized officer or in the absence of the authorized officer, to the head ministerial officer of his office; or

(ii)

by sending it by registered post to the authorized officer.

7.

Notice under section 9(1) etc.

(1)

The notice to be issued by the authorized officer under section 9 (1) shall be in Form 3.

(2)

The copy of the return, the additional particulars or the information to be forwarded under section 9(3) [

*)

[The expression 'and (4)' was omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

shall be forwarded by the authorized officer to the Land Board [

*)

[The words 'or the Sugar Factory Board, as the case may be' were omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

within thirty days from the date on which such return or additional particulars was or were furnished, or such information was obtained, as the case may be.

8.

Manner of service of notice or order under the Act or the rules.

- Any notice or order issued or made under the Act or under these Rules shall be served on the persons concerned in the following manner, namely:-

(a)

in the case of any company, society or association of individuals, whether incorporated or not, be served-

(i)

on the secretary or any director or other principal officer of the company, society or association of individuals, as the case maybe; or

(ii)

by leaving it or sending it by registered post acknowledgement due addressed to the company, society or association of individuals, as the case may be, at the registered office, or if there is no registered office, then, at the place where the company, society or association of individuals, as the case may be, carries on business;

(b)

in the case of any firm, be served-

(i)

upon any one or more of the partners; or

(ii)

at the principal place at which the partnership business is carried on, upon any person having at the time of service the control or management of the partnership business;

(c)

in the case of a family be, served upon the person in management of such family or of the property of such family, in the manner specified in clause (d);

(d)

in the case of an individual person, be served-

- (i)
by delivering or tendering the notice or order to the person concerned or his Counsel or authorized agent; or
- (ii)
by delivering or tendering the notice or order to some adult member of the family; or
- (iii)
by sending the notice or order to the person concerned by registered post acknowledgement due; or
- (iv)
if none of the aforesaid modes of service is practicable, by affixing the notice or order in some conspicuous part of the last known place of residence or business of the person concerned.

9.

Manner of obtaining information under section 9(2)(a), 61(3)(a) or 102(2) (a).

- When the authorized officer has to obtain information under section 9(2)(a), 61(3)(a) or 102(2)(a), he or his agent may obtain it in the following manner, namely:-

- (i)
by making such enquiry, as he or his agent may deem fit; or
- (ii)
by local inspection; or
- (iii)
by reference to any Government records; or
- (iv)
in such other manner, as the authorized officer or his agent may deem fit.

10.

Manner of verification of information obtained under rule 9.

(1)

After obtaining the information under rule 9, the authorized officer shall fix the date on which the enquiry in respect of such information will be held and shall issue a notice to the person concerned in Form 4. The notice shall be served on the person concerned together with a copy of the statement containing the information obtained under rule 9.

(2)

On the date fixed for the enquiry, or on such other date or dates to which the enquiry may be adjourned by the authorized officer, the authorized officer shall give to the person concerned, a reasonable opportunity to adduce any documentary or oral evidence. The authorized officer may also examine such other person or admit such other document, as he considers necessary, to verify the correctness of the information furnished in the statement specified in sub-rule (1).

11.

Procedure to be followed by the authorized officer.

(1)

The proceedings of the authorized officer shall be summary and shall, subject to the provisions of the Act and these rules, as far as possible, be governed by the provisions of the Code of Civil Procedure, 1908 (Central Act V of 1908), with regard to-

- (a)
the issue and service of summons;
- (b)
the examination of parties and witnesses;
- (c)
the production of documents;
- (d)
the amendment of pleadings;
- (e)
the addition of parties;
- (f)

the passing of ex party orders and setting them aside for good cause;

(g)
the ordering of dismissal for default of appearance and setting aside such orders for good cause;

(h)
the reviewing of orders passed on the ground of apparent error;

(i)
local inspection; and

(j)
the passing of orders.

(2)
A summons requiring the attendance of any person or for the production of any document during an enquiry under the Act or these rules shall be in Form 5.

12.
Draft statement under section 10(1).

(1)
The draft statement to be prepared under section 10 (1) shall be in Form 6.

(2)
The draft statement under section 10(1) shall be published in the following manner, namely:-

(i)
publication in the [Fort St. George Gazette;]
[Now, the Tamil Nadu Government Gazette.]

(ii)
publication in the District Gazette of the district in which the land included in the draft statement is situated;

(iii)
affixture on the notice board of the office of the authorized officer within whose jurisdiction the land included in the draft statement is situated;

(iv)
affixture on the notice board of the office of the Tahsildar of the taluk and the Panchayat Union Council of the Panchayat Development Block in which the land included in the draft statement is situated;

(v)
affixture in the village chavadi or, if there is no village chavadi, in some other conspicuous place in the revenue village in which the land included in the draft statement is situated; and

(vi)
in a case where the land included in the draft statement is situated within a panchayat or municipality, by affixture on the notice board of the office of the panchayat or municipality, as the case maybe.

(3)
The notice under section 10(5) shall be in Form 7.

13.
Objection and enquiry under section 10(5).

(1)
The objection to be preferred under section 10(5) shall be in writing and shall be signed and verified by the objector.

(2)
If any objection is received within the time specified in the notice under section 10(5) [***]

[The words 'or within the further time, if any allowed by the authorised officer under the proviso to section 10(5)' were omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

, the authorized officer shall fix a date for hearing the objection and give notice thereof in Form 8 to the objector and to the persons referred to in section 10(5) along with a copy of the objection. The persons referred to in section 10(5) shall be entitled to make a written representation against the objection, on or before the date fixed by the authorized officer for the enquiry and also to attend the enquiry.

(3)
On the date fixed for the enquiry or on such other date or dates to which the enquiry may be adjourned by the

authorized officer, the authorized officer shall hear the objector or his authorized agent and also the persons referred to in section 10(5) and record the evidence that may be adduced in the matter.

14.

Demarcation of land to be declared as surplus.

(1)

(a)

Where a person has opted to declare as surplus land, his share or part thereof in the land held by an undivided Hindu family, Marumakkattayam tarwad, Aliyasanthana family or a Nambudiri illom or in one or more of his holdings held jointly by him along with others; or

(b)

where a family or an individual person has opted to declare as surplus land, the share or part thereof, of the family or of the individual person in the land held by a firm, society, or association of individuals (whether incorporated or not) or by a company (other than a non-agricultural company); and

(c)

where the authorised officer proposes to declare any such share or part as surplus land, the authorized officer shall, except where such share or part consists of whole survey fields or sub-divisions, demarcate such share or part before determining the surplus land of the person or family, as the case may be.

(2)

Before demarcating the share or part thereof under sub-rule (1), the authorized officer shall cause to be served on the person concerned and all other persons having interest in the holding from which the share or part is to be demarcated, a statement showing the particulars of the land comprised in the holding and the share or part thereof of the person in such holding, together, with a notice [in Form 8-A]

[Inserted by G. O. Ms. No. 2377, Revenue, dated the 22nd September 1964.]

calling upon them to appear and file objections, if any, on a date specified in the notice.

(3)

After considering the objections, if any, filed under sub-rule (2), the authorized officer shall demarcate the share or part thereof.

(4)

Where a portion of a land held by a person has to be declared as surplus land, the authorized officer shall demarcate the said portion. Before demarcating the portion, the authorized officer shall cause to be served on the person concerned a notice [in Form 8-B]

[Inserted by G. O. Ms. No. 2377, Revenue, dated the 22nd September 1964.]

fixing the date on which the demarcation is to be made and shall demarcate the portion of the land in accordance with the provisions of section 10(3) and (4) and, as far as practicable, in the presence of the person concerned.

15.

Plotted sketch of land to be declared as surplus to be prepared.

- Before the publication of the final statement under section 12 or 14, the authorized officer shall prepare or cause to be prepared and place on record a plotted sketch showing the land declared as surplus in cases where new sub-divisions of survey fields are involved. The sketch shall be prepared after a personal inspection by the authorized officer or by an officer of the Revenue Department not lower in rank than a Revenue Inspector and empowered by the authorized officer in this behalf.

16.

Procedure for decision of questions of title by the authorized officer.

- In deciding questions of title in the cases referred to in section 11(1), the authorized officer shall hold a summary enquiry. The parties concerned shall be given a reasonable opportunity of being heard and of adducing any documentary or oral evidence. The authorized officer may also examine such other person or admit such other document as he considers necessary. The authorized officer shall, subject to the provisions of section 11(2), pass orders after considering the evidence in the matter.

17.

Final statement under section 12 or 14.

(1)

The final statement to be published under section 12 or 14 shall be in Form 9.

(2)
The statement referred to in sub-rule (1) shall be published in the manner specified in rule 12(2).

(3)
The statement referred to in sub-rule (1) shall be served on the persons referred to in section 10(5) in the manner specified in rule 8.

18.
Procedure to be followed for rectifying bona fide mistakes and clerical errors under sections 15,36 [***]
[The figures '48' was omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]
or 50 (10).

- Before ordering rectification of bona fide mistakes or clerical or arithmetical mistakes under sections 15,36,[***]
[The figures '48' was omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]
or 50(10), the authority or officer concerned shall issue a notice in Form 10 to the parties who would be affected by such rectification and give them a reasonable opportunity of being heard.

19.
Enquiry under section 17(3).

(1)
The application to the authorized officer under section 17(3) shall be in Form 11, accompanied by as many copies of it as there are respondents.

(2)
The application shall be presented in person or by agent or sent by registered post to the authorized officer.

(3)
On receipt of the application, the authorized officer shall cause notice to be served upon the respondents together with copies of the application, to show cause in writing on or before a date specified, as to why the application should not be allowed.

(4)
The respondents shall be given at least a period of one month from the date of service, for the purpose of filing their objections in writing and the notice issued to them shall also intimate the date, time and place for such enquiry:
Provided that the authorized officer may, for sufficient cause, extend the time allowed for filing the objections.

(5)
The respondent shall, at the same time when he files his objections before the authorized officer, serve a copy thereof on the applicant or his counsel or authorized agent.

(6)
The authorized officer may, for reasons to be recorded in writing, adjourn the proceedings, from time to time, under intimation to the parties.

(7)
When the authorized officer has to fix the fair rent for any land while hearing an application under section 17(3), he shall calculate the fair rent in the manner specified in paragraph 4 of Part I of Schedule III to the Act.

(8)
The authorized officer shall on the completion of the enquiry, pass an order determining the amount of compensation payable under section 17 (2) and specifying the person or the persons to whom such compensation shall be paid.

20.
Notification under section 18(1).

- The notification to be published under section 18 (1) shall be in Form 12. It shall, besides being published in the [Fort St. George Gazette,]

[Now, the Tamil Nadu Government Gazette.]
be published in the District Gazette of the district in which the land specified in the said notification or any part thereof is situated.

21.
Manner of publication of proclamation under section 18(2)(a).

- The proclamation referred to in section 18(2)(a) shall be published in English and Tamil and also in any other language

of the local area, in the following manner, namely:-

- (i)
affixture in the village chavadi in the village or town, or if there is no village chavadi, in some other conspicuous place in the village or town, in which any part of the land specified in the notification under section 18(1) is situated;
- (ii)
beat of tom-tom in the said village or town;
- (iii)
affixture on the notice board of the office of the panchayat or municipality in which any part of the land specified in the notification under section 18(1) is situated; and
- (iv)
affixture on the notice board of the office of the Tahsildar of the taluk concerned and of the office of the authorized officer concerned and also of the office of the panchayat union council of the panchayat development block in which the land specified in the notification under section 18 (1) is situated.

22.

Harvest of crop standing on surplus land.

- Where there is any crop standing on the surplus land acquired by the Government under section 18 on the date of the publication of the notification under section 18(1), the authorized officer may permit the harvest of such crop by the person who had raised such crop allowing him sufficient time after the crop has become ripe:

Provided that if the crop is not harvested within the time allowed by the authorized officer in this behalf, the authorized officer may himself arrange for the harvest of the crop, sell the produce, and pay the proceeds thereof to the person who had raised the crop after deducting the cost of harvest and other incidental charges.

23.

Cultivating tenant to continue in possession of land acquired under section 18 in certain cases.

(1)

Subject to the other provisions of these rules, where the surplus land acquired under section 18 is in the possession of a cultivating tenant, such cultivating tenant may, on application made by him to the authorized officer 1 in Form 13, be allowed to continue in possession of such land:

Provided that the extent of land so allowed to be continued in his possession together with the other land, if any, held by him shall not exceed five standard acres.

Explanation. - For the purpose of this rule, "cultivating tenant" shall have the same meaning as in section 3(10) and shall include any tenant who is in actual possession of land, but does not contribute his own physical labour or that of any member of his family in the cultivation of such land.

(2)

The application referred to in sub-rule (1) shall be made within one month from the date of publication of the notification under section 18(1).

(3)

The authorized officer may, on receiving the application referred to in sub-rule (1), make such local inquiry and inspection as may be necessary or cause it to be made by an officer of the Revenue Department not lower in rank than a Revenue Inspector who shall re-submit the application to the authorized officer with his report.

(4)

After such inquiry or inspection or on receipt of the report referred to in sub-rule (3), the authorized officer shall, if he is satisfied as to the bona fides of the application and the applicant's solvency and capacity to undertake the lease, pass orders allowing the applicant to continue in possession of the surplus land on lease. If he is not so satisfied, he shall reject the application. The orders passed on any application shall be communicated to the party concerned.

(5)

The order allowing the cultivating tenant (hereinafter in this rule referred to as the lessee) to continue in possession of the land shall be, subject to the conditions hereinafter specified, namely:-

(a)

The lessee shall execute a lease deed in such form as may be specified by the Government, within one month from the date on which the authorized officer passes orders allowing the lessee to continue in possession of the land.

(b)

The period of lease shall be for one agricultural year in the first instance and, thereafter, the lease may be renewed annually at the discretion of the authorized officer and such renewal shall be, subject to such modifications and additions as may be specified by the authorized officer.

(c)

The lessee shall, within fifteen days from the date of sanction of the lease, deposit one year's rent as security for the due observance and fulfilment of the terms and conditions of the lease and such security deposit shall, unless otherwise dealt with under these rules, be refunded to the lessee after the expiry of the lease.

(d)

The rent chargeable for the land shall be an amount equal to the fair rent calculated in the manner specified in paragraph 4 of Part I of Schedule III to the Act and shall be payable "before such date or dates as may be fixed by the authorized officer.

(e)

Arrears of rent shall bear interest at six per cent per annum from the date on which the rent becomes due.

(f)

The lessee shall not use the land or allow it to be used except for the purpose for which it is leased.

(g)

The lessee shall permit the officers and servants of the Government with or without workmen, at all times, to enter upon the land, to inspect the condition of the land or to execute any work thereon.

(h)

The lessee shall not assign or underrate the benefits arising under the lease, without the previous written permission of the authorized officer.

(i)

The lessee shall take all reasonable measures to the satisfaction of the authorized officer to protect from loss, danger or destruction and to maintain in a proper state of repair, compound walls, bunds and ridges, drainage and irrigation canals and channels, wells, tanks, embankments and structures, gates and pathways, and all other improvements on the land (whether permanent or not) including trees and plants. He shall also take adequate safeguards against trespass by animals or humans and against deterioration of the land generally.

(j)

The lessee shall see that the marks, if any, made by the officers of the Government on trees or other improvements, are preserved and not tampered with.

(k)

The lessee shall have no rights whatsoever to any trees standing on the land.

(l)

The lessee shall not cut or remove any live trees or plants or cause them to be cut or removed without the previous written permission of the authorized officer. He shall hand over, from time to time, the trees cut with the authorized officer's permission, and also the withered, wind-fallen or dead trees and branches, to the village officer who shall arrange for their sale in public auction and remit the proceeds thereof to the Government after deducting the charges incidental thereto.

(m)

The lessee shall not erect any buildings, fences, or structures of a permanent or temporary character on the land without the previous written permission of the authorized officer.

(n)

On the expiry of the period of the lease or termination thereof under clause (r), the lessee shall restore the land to the Government in the state in which it was leased out to him.

(o)

All amounts payable by the lessee to the Government under these rules shall be recoverable as arrears of land revenue under the Revenue Recovery Act for the time being in force.

(p)

When there is a total or partial failure of crops, remission of rent shall be allowed to the lessee to the same extent, on the same principle, and in the same proportion, as remission of land revenue assessment is allowed by the Government.

(q)

When a lessee dies, his heirs shall have the option to continue in possession of the land for the expired period of the lease on the same terms and conditions.

(r)

In the event of infringement of any of the terms and conditions specified in these rules or in the order allowing the lessee to continue in possession of the land or in the deed witnessing the lease, the lessee shall be liable to forfeit the amount of deposit made by him under clause (c) and to pay such compensation as may be determined by the authorized officer, for any loss or damage resulting from such infringement. Such infringement shall also render the lease liable to termination without compensation to the lessee. It shall also be competent for the authorized officer or any person authorized by him, to enter upon the land leased out and evict the lessee summarily from the land: Provided that before taking action under this clause, the lessee shall be given a reasonable opportunity of showing cause against the action proposed to be taken.

(6)

If the lessee desires to have the lease renewed, he shall apply to the authorized officer for renewal in Form 13, and not less than three months before the date of expiry of the lease.

24.

Co-operative society, etc., to continue in possession of land acquired under section 18(1) in certain cases.

(1)

Subject to the other provisions of these rules, where the surplus land acquired under section 18 is in the possession of any cooperative society registered or deemed to have been registered under the Tamil Nadu Cooperative Societies Act, 1932 [(Tamil Nadu Act VI of 1932)]

[See now Tamil Nadu Co-operative Societies Act, 1983 (Tamil Nadu Act 30 of 1983

)]

or under the Travancore-Cochin Co-operative Societies Act, 1951 (Travancore-Cochin Act X of 1952) or any land mortgage bank to which the Tamil Nadu Co-operative Land Mortgage Banks Act, 1934 (Tamil Nadu Act X of 1934) applies or any agricultural company, such co-operative society, land mortgage bank or agricultural company may, on application made by it to the authorized officer in Form 14, be permitted to continue in possession of such land.

(2)

The application referred to in sub-rule (1) shall be made within one month from the date of publication of the notification under section 18(1).

(3)

The authorized officer shall, on receipt of the application referred to in sub-rule (1), cause such enquiry as he considers necessary to be made, on the working of the co-operative society, land mortgage bank or agricultural company, and, if he is of the opinion that it is functioning satisfactorily and that the continued possession of the land by such co-operative society, land mortgage bank or agricultural company will best subserve the common good and increase agricultural production, the land shall, subject to the provisions of sub-rule (4), be permitted to continue in its possession.

(4)

The order permitting the co-operative society, land mortgage bank or agricultural company (hereinafter in this sub-rule referred to as the lessee), to continue in possession of the land shall be, subject to the conditions hereinafter specified, namely:-

(a)

The lessee shall execute a lease deed in such form as may be specified by the Government within one month from the date on which the authorized officer passes orders permitting the lessee to continue in possession of the land.

(b)

The period of lease shall be five years and, on the expiration of that period, the authorized officer may, from time to time, renew the lease for such period not exceeding five years at a time. Such renewal shall be, subject to such modifications and additions as may be specified by the authorized officer.

(c)

The rent chargeable for the land shall be an amount equal to the fair rent, calculated in the manner specified in paragraph 4 of Part I of Schedule III to the Act and shall be payable before such date or dates, as may be fixed by the authorized officer.

(d)

Arrears of rent shall bear interest at six per cent per annum from the date on which the rent becomes due.

(e)

The lessee shall not use the land, or allow it to be used, except for the purpose for which it is leased.

(f)

The lessee shall permit the officers and servants of the Government, with or without workmen, at all times, to enter upon the land, to inspect the condition of the land or to execute any work thereon.

(g)

The lessee shall not assign or underrate the benefits arising under the lease, without the previous written permission of the authorized officer.

(h)

The lessee shall take all reasonable measures to the satisfaction of the authorized officer to protect from loss, danger or destruction and to maintain in a proper state of repair, compound walls, bunds and ridges, drainage and irrigation canals and channels, wells, tanks, embankments and structures, gates and pathways, and all other improvements on the land (whether permanent or not) including trees and plants. The lessee shall also take adequate safeguards against trespass by animals or humans and against deterioration of the land generally.

(i)

The lessee shall see that the marks, if any, made by the officers of the Government on trees or other improvements, are preserved and not tampered with.

(j)

The lessee shall have no rights whatsoever to any trees standing on the land.

(k)

The lessee shall not cut or remove any live trees or plants, or cause them to be cut or removed, without the previous written permission of the authorized officer. The lessee shall hand over, from time to time, the trees cut with the authorized officer's permission, and also the withered, wind-fallen or dead trees and branches, to the village officer, who shall arrange for their sale in public auction and remit the proceeds thereof to the Government after deducting the charges incidental thereto.

(l)

The lessee shall not erect any buildings, fences, or structures of a permanent or temporary character, on the land, without the previous written permission of the authorized officer.

(m)

On the expiry of the lease or termination thereof under clause (p), the lessee shall restore the land to the Government in the state in which it was leased out to it.

(n)

All amounts payable by the lessee to the Government under these rules shall be recoverable as arrears of land revenue under the Revenue Recovery Act for the time being in force.

(o)

When there is a total or partial failure of crops, remission of rent shall be allowed to the lessee to the same extent, on the same principle, and in the same proportion, as remission of land revenue assessment is allowed by the Government.

(p)

In the event of infringement of any of the terms and conditions specified in these rules or in the order permitting the lessee to continue in possession of the land or in the deed witnessing the lease, the lessee shall be liable to pay such compensation as may be determined by the authorized officer for any loss or damage resulting from such infringement. Such infringement shall also render the lease liable to termination without compensation to the lessee. It shall also be competent for the authorized officer or any person authorized by him to enter upon the land leased out and evict the lessee summarily from the land:

Provided that before taking action under this clause, the lessee shall be given a reasonable opportunity for showing cause against the action proposed to be taken.

(q)

The lessee shall have the option of surrendering possession of the land even before the expiry of the term of the lease, by giving to the authorized officer three months notice expiring with the end of an agricultural year.

(5)

If the lessee desires to have the lease renewed, the lessee shall apply to the authorized officer for renewal in Form 14, not less than three months before the date of expiry of the lease.

25.

Declaration under section 19(1).

(1)

The declaration to be made by a transferee under section 19(1) shall be in Form 15.

Explanation I. - Where the declaration has been signed by the transferee, it shall be filed before the registering authority by the transferee, either in person or by an authorized agent.

Explanation II. - Where the transferee is-

(a)

dead before the filing of the declaration, each legal representative of the deceased transferee shall file it, [either in person or by an authorized agent]

[The words 'either in person or by an authorised agent' was added by G. O. Ms. No. 1879, Revenue, dated the 8th December 1964.]

;

(b)

a minor, lunatic, idiot or one, who is subject to a like disability, the declaration shall be made by the guardian, manager or other person in charge of such person or of the property of such person, [and shall be filed, either in person or by an authorized agent]

[Added by G. O. Ms. No. 1879, Revenue, dated the 8th December 1964.]

;

(c)

a company or other corporate body, the declaration shall be signed by any person competent to act for such company or body in this behalf, [and shall be filed either in person or by an authorized agent].

(2)

One copy of the declaration referred to in sub-rule (1) shall be forwarded to the authorized officer concerned by the registering authority. Copies of the declarations filed during a fortnight shall be forwarded by the registering authority within a week after the expiry of the fortnight by registered post with an invoice in duplicate showing the number of declarations sent and the registration numbers of the documents to which the declarations relate. The authorized officer shall, on receipt of the declarations, return the duplicate copy of the invoice duly acknowledged.

(3)

The authorized officer shall verify the correctness of the particulars furnished in the declaration in regard to the extent of land already held as well as that of the land acquired by the transferee, by making such local enquiry and inspection as he considers necessary, either by himself or through any officer of the Revenue Department, not lower in rank, than a Revenue Inspector. If the authorized officer has reason to believe that there has been contravention of any of the provisions of the Act in any particular case, he may take such action as he deems fit in accordance with the provisions of the Act or these rules.

(4)

If the authorized officer has reason to believe that a part of the holding of the transferee is situated within the jurisdiction of another authorized officer, he may address the authorized officer concerned for verification of the correctness of the particulars furnished in the declaration relating to such holding and the latter shall verify the correctness of such particulars in the manner specified in sub-rule (3) and make a report to the former.

26.

Returns under section 21.

(1)

The return to be furnished under section 21(1) shall be in Form 16.

(2)

The return to be furnished under section 21 (2) shall be in Form 17.

27.

[Qualification of non-official members of the Land Board nominated under section 24(2)(d).

[Substituted by G. O. Ms. No. 14-18, Revenue dated the 15th July 1976.]

- The two non-official members to be nominated by the Government under section 24(2)(d) to serve on the Land Board, shall be, persons having, in the opinion of the Government, knowledge of the working and development of plantations.]
28.

[Omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

29.

[Omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

30.

Application under section 30 and the mode of presentation.

(1)

The application to the Land Board under section 30 shall be in Form 19, accompanied by a site plan drawn to scale, showing the existing area under plantation and the area proposed for acquisition.

(2)

It shall be presented in person or by agent or be sent by registered post to the Secretary to the Land Board.

31.

Additional matter to be considered by the Land Board when granting or refusing permission under section 31.

- In deciding whether to grant or refuse permission under section 31, the Land Board shall, in addition to the matters specified in section 32, take into consideration the suitability of the land proposed to be acquired for the extension, or for ancillary purposes, of the plantation.

32.

[Omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

33.

[Omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

34.

Headquarters of the Land Board [***]

[The words ' and the sugar Factory Board', 'and of the Sugar Factory Board' and ' or the Sugar Factory Board' omitted by G.O. Ms.No 3508, Revenue dated the 14th June 1973.]

and the procedure for their meetings.

(1)

The head quarters of the Land Board [***]

[The words ' and the sugar Factory Board', 'and of the Sugar Factory Board' and ' or the Sugar Factory Board' omitted by G.O. Ms.No 3508, Revenue dated the 14th June 1973.]

shall be at [Chennai]

[Substituted for the word 'Madras' by City of Madras (Alternation of Name) Act,1996 (Tamil Nadu Act 28 of 1996).]

.

(2)

[The Land Board shall meet as and when the Chairman of the Land Board considers that it is necessary that the Land Board should meet.]

[Substituted by G.O. ms. No.77/88,Revenue,dated the 24th March 1988.]

(3)

Seven days' notice in the case of ordinary meetings, and as much notice as is practicable in the case of special meetings shall be given to members.

(4)

The Land Board [***]

[The words ' and the sugar Factory Board', 'and of the Sugar Factory Board' and ' or the Sugar Factory Board' omitted by G.O. Ms.No 3508, Revenue dated the 14th June 1973.]

shall ordinarily sit for the transaction of business at the headquarters, but may sit at such other place as may be fixed by the Chairman. The Chairman shall fix the time for each meeting. In fixing the place and time for meetings, the Chairman shall have regard to the convenience of the Board and of the parties.

(5)

(a)

The Secretary to the Land Board [***]

[The words 'and the sugar Factory Board', 'and of the Sugar Factory Board' and 'or the Sugar Factory Board' omitted by G.O. Ms.No 3508, Revenue dated the 14th June 1973.]

shall send to each member, at least three clear days in advance, a copy of the agenda for the meeting approved by the Chairman, together with copies of the notes on the various subjects included thereon.

(b)

The Secretary to the Land Board [***]

[The words 'and the Sugar Factory Board', 'and of the Sugar Factory Board' and 'or the Sugar Factory Board' omitted by G. O. Ms. No. 3508, Revenue dated the 14th June 1973.]

shall send to each member, at least a day in advance, a copy of the supplementary agenda, regarding urgent items, if any, for the meeting approved by the Chairman, together with copies of the notes on the various subjects included therein.

(6)

(a)

The quorum for a meeting of the Land Board [***]

[The words 'and the Sugar Factory Board', 'and of the Sugar Factory Board' and 'or the Sugar Factory Board' omitted by G. O. Ms. No. 3508, Revenue dated the 14th June 1973.]

shall be three members including the Chairman, or the member presiding.

(b)

If there is no quorum within 15 minutes of the time appointed for the meeting, the Chairman or the member presiding shall adjourn the meeting to a future date, unless the members present agree to wait for any further time.

(c)

No quorum shall be necessary at an adjourned meeting.

(7)

(a)

No subject other than those included in the agenda or supplementary agenda for a meeting, shall be considered or discussed at that meeting. If any member desires to send any note or subject for inclusion in the agenda and if it reaches the Chairman ten days in advance of a meeting, it shall be included in the agenda for the meeting in question.

(b)

No subject shall be considered at an adjourned meeting other than those included in the agenda or supplementary agenda for the original meeting, provided that the Chairman may, with due notice, also bring or direct to be brought before an adjourned meeting any new matter which in his opinion is urgent.

(c)

Any point of order raised at a meeting shall be decided by the Chairman and his decision shall be final.

(8)

(a)

In making an enquiry under the provisions of the Act, the Land Board [***]

[The words 'and the Sugar Factory Board', 'and of the Sugar Factory Board' and 'or the Sugar Factory Board' omitted by G. O. Ms. No. 3508, Revenue dated the 14th June 1973.]

may examine orally any party or any other person who, in the opinion of the said Board, is likely to be acquainted with the matter under enquiry or any fact relevant thereto and the Chairman shall reduce to writing the substance of such examination.

(b)

Such party or other person shall be bound to answer truly all questions relating to such matter or fact put to him by the said Board, other than questions the answers to which would expose him to criminal charge or to a penalty or forfeiture.

(9)

The proceedings of every meeting of the Land Board [***]

[The words 'and the Sugar Factory Board', 'and of the Sugar Factory Board' and 'or the Sugar Factory Board' omitted by G. O. Ms. No. 3508, Revenue dated the 14th June 1973.]

together with the names of the members present, shall be recorded and compiled by the Secretary to the Board in an appropriate manner.

35.

[G. O. Ms. No. 77/88, Revenue, dated the 24th March 1988]

36.

Remuneration and allowances to no.

- official members of the Land Board - Non-official members nominated by the Government to serve on the Land Board shall be paid, such remuneration and allowances as may be fixed by the Government.

37.

Travelling allowances.

- The Chairman and other members of the [Land Board]

[The word 'Board' was substituted by G. O. Ms. No. 3508, dated the 14th June 1973.]

[***]

[The words 'and the Sugar Factory Board', 'and of the Sugar Factory Board' and 'or the Sugar Factory Board' were omitted by G. O. Ms. No. 3508, Revenue dated the 14th June 1973.]

shall be entitled to the payment of travelling allowances for the journeys performed by them for the purposes of the said Board as shown below:-

(i)

The Chairman and Members of the Board who are Government servants, shall be allowed to draw travelling allowances admissible to them under the [Tamil Nadu] Travelling Allowance Rules.

(ii)

Any non-official who is [

*)

[The words 'and the Sugar Factory Board', 'and of the Sugar Factory Board' and 'or the Sugar Factory Board' were omitted by G. O. Ms. No. 3508, Revenue dated the 14th June 1973.]

[

*)

[The expression 'Chairman of the Land Board or' were omitted by G. O. Ms. No. 77/88, Revenue, dated the 24th March 1988.]

a member of the Land Board, shall be allowed travelling allowances applicable to I Class Government Committees at the rates specified in ruling (8) to Part III of the Manual of Special Pay and Allowances, Volume I.

(iii)

The Chairman of the Land Board [***]

[The words 'and the Sugar Factory Board', 'and of the Sugar Factory Board' and 'or the Sugar Factory Board' were omitted by G. O. Ms. No. 3508, Revenue dated the 14th June 1973.]

shall be the Controlling Officer in respect of his travelling allowance bills and the Chairman of the Land Board shall be the Controlling Officer in respect of the travelling allowance bills of the non-official members of the Land Board nominated under section 24(2) (d).

Any other member of the Land Board [***]

[The words 'and the Sugar Factory Board', 'and of the Sugar Factory Board' and 'or the Sugar Factory Board' were omitted by G. O. Ms. No. 3508, Revenue dated the 14th June 1973.]

shall be the Controlling Officer in respect of his travelling allowance bills.

38.

Power to appoint officers and servants of the Land Board [***]

[The words 'and the Sugar Factory Board' and 'of the Sugar Factory Board' were omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

.

- The Chairman of the Land Board [***]

[The words 'and the Sugar Factory Board' and 'of the Sugar Factory Board' were omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

shall be the appointing authority in respect of the officers (other than the Secretary) and servants of such Board.

39.

[Omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973]

40.

Claim for compensation.

(1)

Every person claiming compensation under section 50 (1) shall prefer the claim in Form 21.

(2)

It shall be presented in person or by agent or be sent by registered post to the authorized officer.

41.

Procedure for determination of fair rent.

(1)

On receipt of claims for compensation within the period specified in section 50(2) or if no such claim is preferred within that period, the authorized officer shall, at any time after the expiry of that period, determine the fair rent in respect of the surplus land in the manner specified in paragraph 4 of Part I of Schedule III to the Act. If the surplus land or part thereof is situated within the jurisdiction of another authorized officer, the authorized officer concerned may get the relevant particulars required for the fixation of fair rent from the authorized officer in whose jurisdiction the land is situated. The latter shall furnish the particulars to the former after verifying the correctness of such particulars by himself or by some other officer as he thinks fit.

(2)

[In computing the fair rent in terms of cash, the authorised officer shall fix the cash value of the crop in a fair and reasonable manner, with reference to post harvest prices for the crop prevailing in the area in the year of the publication of the notification under section 18(1). In doing so, he shall take into consideration the Government records containing the season and crop and price reports and also consult the [Director of Statistics,]

[Substituted by G. O. Ms. No. 911, Revenue dated the 9th April 1978.]

if considered necessary:]

Provided that where maximum price has been notified under any statutory provision, such price shall not be exceeded.

(3)

Subject to the provisions of paragraph 4 of Part I of Schedule III to the Act, for determining the normal gross produce in respect of any land for any specified crop, the authorized officer shall ascertain the quantity of the produce which will be obtained if such crop were grown in a year in which the rainfall and the seasons are of a normal character, on a land of the same class as the land in question similarly situated and possessing similar advantages. For the purposes of such determination, the authorized officer may take into consideration,-

(a)

the soil classification of the land and the normal or standard out turn of paddy in the case of wet land and of the dry or irrigated crop in the case of dry unirrigated or irrigated land for the different classes and sort of soil;

(b)

the Government records containing season and crop reports and rainfall accounts;

(c)

the accounts of landowners, intermediaries and cultivating tenants wherever available for similar lands enjoying similar advantages; and

(d)

the oral or documentary evidence adduced by any of the interested parties and decrees of Civil Courts.

42.

Authorized officer may direct enquiry to be made by other officer.

(1)

In any proceeding under the Act, the authorized officer shall have also power to depute any officer of the Revenue Department not lower in rank than that of a Revenue Inspector to make local enquiry and inspection and to collect relevant data.

(2)

The officer so. deputed shall submit a report of such enquiry and inspection in writing and this report shall be part of the evidence in the proceeding.

(3)

The parties to the proceeding shall be entitled to be furnished with copies of the report and may file objections thereto.

The authorized officer shall, in passing orders in the matter, consider the report together with the objections thereto.

43.

Party to be represented by counsel or authorised agent.

(1)

In any proceeding under the Act before the authorized officer, the Land Tribunal, the Land Commissioner, or the Land Board, any party shall be entitled to be represented by Counsel to act and plead on his behalf.

(2)

The authorized officer, the Land Tribunal, the Land Commissioner or the Land Board, as the case may be, may permit an authorized agent to act and plead on behalf of a party. The permission so granted may, for reasons to be recorded in writing, be cancelled by such officer, Tribunal, Commissioner or Board, as the case may be, at any stage of the proceeding:

Provided that the party concerned shall be informed of such cancellation and he shall be afforded sufficient opportunity for his being thereafter represented in such proceeding by counsel or by any other authorized agent.

44.

Manner of apportionment of compensation.

(1)

If there are several persons amongst whom the amount of compensation payable for the surplus land acquired has to be apportioned and if such persons agree in the apportionment of the compensation, the amount of compensation shall be apportioned accordingly and the particulars of such apportionment shall be specified in the draft compensation assessment roll referred to in section 50(3).

(2)

In the absence of any agreement as to the apportionment of the amount of compensation amongst the persons interested, the authorized officer shall make a summary enquiry' and apportion the amount of compensation among them in proportion to the value of their respective interests.

45.

Draft compensation assessment roll.

(1)

The draft compensation assessment roll referred to in section 50(3)(a) shall be prepared in Form 22. The authorized officer shall also record in a separate order his reasons for arriving at the findings set out in the draft compensation assessment roll.

(2)

The statement referred to in section 50(3)(a)(i) and the notice referred to in section 50(3)(a)(ii) shall be in Forms 23 and 24, respectively.

(3)

The draft compensation assessment roll referred to in sub-rule (1) together with the statement and the notice referred to in sub-rule (2) shall be published in the manner specified in rule 12(2).

46.

Objection under section 50(3)(a)(ii).

- The objections to be preferred under section 50(3) (a) (ii) shall be in writing and shall be presented in person or by agent or be sent by registered post to the authorized officer concerned.

47.

Final publication of compensation assessment roll.

- The final compensation assessment roll referred to in section 50(5) or 50(6) shall be published in the [Fort St. George Gazette.]

[Now, Tamil Nadu Government Gazette.]

48.

Endorsement under section 50(8).

- The certificate referred to in section 50(8) shall be in Form 25 and shall be endorsed by the authorized officer within thirty days from the date of final publication of the compensation assessment roll in the [Fort St. George Gazette.]

[Now, Tamil Nadu Government Gazette.]

49.

Disposal of claims preferred by mortgagee or charge holder on surplus land under section 51.

(1)

Any mortgagee or charge holder of the surplus land acquired by the Government, who desires to prefer a claim before the authorized officer under section 51(1) shall file an application in Form 26.

(2)

It shall be presented in person or by agent or be sent by registered post to the authorized officer having jurisdiction. The claimant shall also send a copy of the application to the respondents concerned.

(3)

On receipt of the application under sub-rule (1), the authorized officer shall fix a date for enquiry and issue notices in Form 27 to the parties concerned and decide the claim after giving a reasonable opportunity to the parties to produce such evidence as may be necessary.

50.

Return under section 61(1) and notice under section 61(2).

(1)

The return referred to in section 61 (1) shall be in Form 28.

(2)

It shall be presented in person or by agent or be sent by registered post to the authorized officer within whose jurisdiction the holding of such cultivating tenant or the major part thereof is situated.

(3)

The notice to be issued by the authorized officer under section 61(2) shall be in Form 29.

51.

Procedure to be followed before taking possession of land under section 62.

(1)

On receipt of the return or the information under section 61 and after following the procedure specified in rules 9 and 10, the authorized officer shall prepare a statement in Form 30 and cause copy thereof to be served on the landowner and the cultivating tenant with a notice in Form 31 calling upon them to file objection, if any, to the said statement within thirty days from the date of service of the notice or within such further time not exceeding thirty days as the authorized officer may, in his discretion, allow. The authorized officer shall give a reasonable opportunity to the landowner and the cultivating tenant for adducing any documentary or oral evidence and pass such orders as he deems fit.

(2)

After he has passed orders under sub-rule (1) and after hearing any representation made under the first proviso to section 62, the authorised officer shall issue a notice in Form 32 intimating the landowner and the cultivating tenant of his decision to take possession of the land which is declared to be in excess of the cultivating tenant's ceiling area and the date on which he proposes to take possession of the land. The notice shall be served on the landowner and the cultivating tenant in the manner specified in rule 8.

[(2-A) Notwithstanding anything contained in sub-rules (1) and (2), where the authorised officer finds that the land held by a cultivating tenant in excess of the cultivating tenant's ceiling area is not more than half an acre in the case of wet land or one acre in the case of dry land, the authorised officer may, for reasons to be recorded in writing, leave such excess land in the possession of the cultivating tenant.]

[Inserted by G. O. Ms. No. 2701, Revenue, dated the 20th November 1964.]

(3)

Where there is any crop standing on the land taken possession of under section 62, the authorized officer shall, as far as may be, follow the procedure specified in rule 22.

52.

Payment of fair rent under section 63(2).

(1)

Within thirty days from the date of service of the notice in Form 32, the landowner shall express his option to receive the fair rent in cash or kind. The fair rent for the land shall, as far as practicable, be payable in accordance with the option expressed by the land owner. When the fair rent is payable in kind, the value of one-fifth of the straw or stalk of all the crops cultivated on the land in an agricultural year, shall also be payable together with the fair rent in kind.

(2)

The fair rent shall be payable to the landowner on behalf of the Government by the person to whom the possession of land has been distributed under section 64 (1) (hereinafter in these rules referred to as the allottee) within fifteen days from the harvest of each crop after obtaining a receipt from the land owner. If the landowner refuses to accept the fair rent or to give a receipt therefor, the fact of such refusal shall be intimated to the authorized officer and the amount of fair rent or where the fair rent is payable in kind, its cash value shall be remitted to the authorized officer.

(3)

In the following cases, the amount of fair rent, or where the fair rent is payable in kind, its cash value, shall be kept in revenue deposit and the authorized officer shall intimate the fact of deposit to the parties concerned:-

(i)

where the landowner refuses or is unwilling to receive the fair rent or refuses to give a receipt therefor.

(ii)

in case of dispute as to the title to receive the fair rent.

53.

Distribution of possession of land under section 64(1).

(1)

The distribution of possession of the land referred to in section 64(1) shall be in accordance with the procedure set out in sub-rules (2) to (10).

(2)

While intimating the cultivating tenant of his decision to take possession of the land under the second proviso to section 62, the authorized officer shall cause to be published a notice in Form 33 in the manner specified in items (iii) to (vi) of rule 12 (2).

(3)

Application for distribution of possession of land under section 64 shall be in Form 34 and shall be presented in person or by agent or be sent by registered post to the authorized officer.

(4)

The authorized officer may, on receiving an application under sub-rule (3) make such local enquiry and inspection, as may be necessary or cause it to be made by an officer of the Revenue Department not lower in rank than a Revenue Inspector who shall resubmit the application to the authorized officer with his report.

(5)

After such enquiry or inspection or on receipt of the report referred to in sub-rule (4), the authorized officer shall, after such further investigation as he may deem necessary, pass orders, thereon, either allotting the land applied for or rejecting the application. Orders passed on any application shall be communicated to the party concerned. If there are more than one applicant for the same land, the authorized officer shall select two applicants, and shall issue orders to the two applicants simultaneously indicating the order of preference in respect of allotment and calling upon them to remit the security deposit under sub-rule (6) and within the time specified in that sub-rule. If both the applicants remit the security deposit in time, the applicant who is the first in the order of preference indicated as aforesaid shall be allotted the land and the security deposit of the other shall be refunded to him. If, however, the applicant who is the second in the said order of preference alone remits the security deposit in time, then, he shall be allotted the land.

(6)

The allottee shall, within ten days from the date of the order of allotment of the land, deposit one year's rent as security for the due observance and fulfilment of the terms and conditions of the allotment and it shall, unless otherwise dealt with under these rules, be refunded to the allottee after the expiry of the allotment period.

(7)

The allottee shall execute an agreement in such form as may be specified by the Government within thirty days from the date of the order allotting the land to him.

(8)

If the allottee fails to remit the security deposit within the time provided for in sub-rule (6) or fails to execute the agreement within the time provided for in sub-rule (7), the authorized officer shall cancel the order of allotment and may allot the land to any other applicant, whom he considers to have the best claim, if there were more than two applicants, and in other cases, call for fresh applications and proceed to deal with the matter afresh. The applicant who has failed to deposit the amount under sub-rule (6) shall not be eligible for applying for land again under this sub-rule.

(9)

Any amount due to the Government from the person to whom possession of land is distributed under section 64, shall be recoverable as arrears of land revenue under the Revenue Recovery Act for the time being in force.

(10)

Subject to the provisions of this rule, the terms and conditions applicable to leases under rule 23(5) shall, as far as may be, apply to the allotment of land under this rule.

54.

Manner of eviction under section 65.

- The person who has to be summarily dispossessed of the land under the provisions of section 65, shall be served with an order of eviction together with a notice indicating therein the particulars of land and the time within which the said person is required to vacate the land and also stating that if such notice is not obeyed, eviction shall be carried out by entering upon the land. Any crop or other produce raised on the land shall be liable to forfeiture.

55.

Return under section 69(1).

(1)

The return referred to in section 69(1) shall be in Form 35.

(2)

It shall be presented in person or by agent or be sent by registered post to the authorized officer concerned.

55A.

[Factors to be taken into consideration under section 37-A(3)(c).

[Inserted by G. O. Ms. No. 3532. Revenue, dated the 30th December 1972.]

- The Government shall, in deciding whether to grant or refuse the permission under sub-section (2) of section 37-A, take into consideration the following factors in addition to the factors specified in sub-section (3) of the said section, namely:-

(a)

total extent of land held or proposed to be acquired by the industrial or commercial undertaking;

(b)

the extent of land in which industrial or commercial operation is carried on;

(c)

the extent of land utilised or proposed to be utilised for the construction of quarters, playgrounds and parks.]

56.

[Permission to undertakings to hold or acquire excess land.

[Substituted by G. O. Ms. No. 3532, Revenue, dated the 30th December 1972.]

- [(1) If any industrial or commercial undertaking, desires to acquire any land in excess of the ceiling area, it shall make an application in writing to the Government in the Revenue Department in Form 36.

(1-A) If any industrial or commercial undertaking desires,-

(a)

to hold any land acquired in excess of the ceiling area before the 25th November 2010;

(b)

to hold any land acquired in excess of the ceiling area after the 25th November 2010,

It shall make an application in writing to the Government in the Revenue department in Form 36,-

(i)

within a period of one hundred and eighty days from the 25th November 2010;

(ii)

within a period of one hundred and eighty days from the date on which such lands were acquired through registered documents:

Provided that the Government in Revenue department may admit an application presented after the expiration of the prescribed period, if the Government in Revenue department is satisfied that the applicant concerned has sufficient cause for not presenting it within the said period.]

(2)

On receipt of the application, the Government may, after taking into consideration the factors specified in rule 55-A,

grant permission to hold or acquire the whole or part of such land, if in their opinion, the undertaking bona fide carries on any industrial or commercial operation.

(3)

The permission so granted shall be, subject to the following conditions, namely:-

(i)

If the land held by the industrial or commercial undertaking is intended for raising agricultural produce-

(a)

the permission shall be for a period of three years, but the Government may, from time to time, extend the permission for a further period not exceeding three years at a time; and

(b)

a substantial portion of such produce shall be utilised for the main purpose of the undertaking or for ancillary purposes of such undertaking.

(ii)

If the land held by the industrial or commercial undertaking is required for mining operations to be carried out at a future date, the permission shall be in force only as long as such operations are carried on under any licence or lease granted under the Mines and Minerals (Regulation and Development) Act, 1957 (Central Act LXVII of 1957), and the rules made thereunder and as long as the licence or the lease is in force.

(iii)

If the land held by the industrial or commercial undertaking is required for future expansion of the undertaking, the land shall be fully utilised for such expansion within such period as the Government may, from time to time, by general or special order, specify. In the absence of such an order, the land shall be utilised for such expansion within a period of five years from the date of the order granting permission.

(iv)

If the land is required by the industrial or commercial undertaking for any purpose other than the purposes referred to above, the undertaking shall comply with such conditions as the Government may specify in the order granting such permission.

(v)

The industrial or commercial undertaking shall comply with such other conditions as the Government may, from time to time, by general or special order, specify.

(vi)

The industrial or commercial undertaking shall, at all reasonable times, allow the land to be inspected by an officer of the Revenue Department not lower in rank than a Revenue Inspector to verify whether the conditions subject to which the permission has been granted or whether such other conditions as may be specified by the Government by general or special order, are complied with and in any case where such officer, is satisfied that any of the conditions subject to which permission is granted has not been complied with, he shall report the matter to the Government through the Land Commissioner, for such action as the Government may deem fit.

(vii)

The industrial or commercial undertaking shall furnish any information called for by the Government or by any officer subordinate to the Government.

(viii)

In the event of the industrial or commercial undertaking ceasing to carry on the industrial or commercial operation, the undertaking shall forthwith inform the Government about such cesser and the Government may, either suo motu or on receipt of such information, make enquiry as they deem fit and cancel the permission:

Provided that before such cancellation, the undertaking shall be given a reasonable opportunity of being heard.

(ix)

If, at any time, the industrial or commercial undertaking is transferred, the transferor and the transferee shall, within thirty days from the date of such transfer, intimate the fact of transfer to the Government and the Government may, after making such enquiry as they deem fit,-

(a)

pass an order directing that the permission already granted to the transferor shall operate in favour of the transferee on the same terms and conditions subject to which the permission was granted to the transferor, with effect from the date of

the transfer for the unexpired period of the permission; or

(b)

cancel the permission, after giving to the transferee, an opportunity of being heard.

(x)

(a)

If the land in respect of which permission has been granted is used for any purpose other than the purpose for which permission was granted, the industrial or commercial undertaking concerned shall intimate the diversion of the purpose to the authorized officer within thirty days from the date on which such diversion of purpose takes place.

(b)

The authorized officer shall, on receipt of such intimation, inspect the land and make such enquiry as he deems fit and if he is satisfied that the land is not used for the purpose for which the permission was granted or for any ancillary purpose, he shall report the matter to the Government through the Land Commissioner for such action as the Government may deem fit.]

57.

[Omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

58.

[Omitted by G. O. Ms. No. 3508, Revenue, dated the 14th June 1973.]

59.

Manner of communication of decision or order to parties.

- Every decision or order of any authority or officer in any proceeding against which an appeal or revision is provided for by the Act shall be served in the manner specified in rule 8.

60.

Court- fees.

- The Court-fee payable in respect of the documents specified in column (2) of the Table below shall be the amount specified in the corresponding entry in column (3) thereof.

Table

Serial No.(I)

Description of document (2)

Court-fee Rs.F. (3)

1.

Objection petition in regard to the draft statement under section 10(5)

100

2.

Application under section 15 for rectification of bona fide mistakes or clerical errors in the final statement published under section 12 or 14

Nil

3.

Application to the authorized officer for decision under section 16(3)(a)(iii)

100

4.

Application for deciding dispute under section 17(3)

100

5.

Application under the proviso to section 18(3) or the third proviso to section 62 for permission to harvest any crop standing on the land acquired under section 18(1) or taken possession of under section 62

100

6.

Application under section 18(5) for continuance of possession of land acquired by Government.

100

7.

Application to the Land Board under section 26 or section 30

2.00 per standard acre of the land proposed to be acquired subject to a minimum fee of Rs. 10 and a maximum fee of Rs. 100.

8.

Application under section 36 for rectification of bona fide mistakes or clerical errors noticed in the decision of the Land Board.

Nil

9.

Claim application under section 50(2)

100

10.

Objection petition in regard to the draft compensation assessment roll under section 50(3)

100

11.

Application under section 50(9) for rectification of bona fide mistakes in the compensation assessment roll as published finally

Nil

12.

Application under section 50(10) for correction of any clerical or arithmetical mistake in regard to any entry in the compensation assessment roll as published finally

Nil

13.

Claim application under section 51(1)

100

14.

Application under section 63(3) for deciding any dispute relating to rent payable under section 63(2)

100

15.

Application for distribution of possession of land under section 64(1)

100

16.

Application under section 66(3) for deciding any dispute arising in regard to the amount of compensation payable under section 66(2)

100

17.

Application under section 75 for deciding

whether any grazing land referred to in section 74 has become fit for cultivation

Nil

18.

Petition under section 84 to stay execution of any decision-

(i) To the High Court

500

(ii) To the Land Commissioner

250

(iii) To the Land Tribunal

250

19.

Application under section 99 for transfer of proceedings from one authorized officer to another

200

20.

Interlocutory applications in respect of proceedings before any authority or officer not otherwise provided for

100

21.

Applications or petitions other than those specified above and in section 108, -

(a) To the Government

200

(b) To the Land Commissioner

200

(c) To the Land Board

200

(d) To the Sugar Factory Board

200

(e) To the Sugar Factory Tribunal

200

(f) To the Land Tribunal

200

(g) To the Authorized Officer

100

(h) To any other officer or authority

100

61.

Process-fees.

- The rates of process-fees leviable for service of notices and summons on defendants, respondents and witnesses shall be calculated as follows:

Rs.

P.

(a)

When sent by registered post, for each defendant, respondent or witness

2

25

(b)

When served by an
officer of the Court -

(i) On a defendant,
respondent or witness

(ii) On every additional defendant, respondent
or witness residing in the same village if the process is applied
for at the same time

2

25

1

15

2. The travelling expenses of the process server at four paise per Kilometer shall be calculated from the headquarters of the Court to the place of service and shall be recovered from the parties, by way of Court-fee stamps in addition to process fees.

62.

[Time-limit for presenting an application for revision to the Land Commissioner under section 82.

[Added by G. O. Ms. No. 1281, Revenue, dated the 23rd March 1974.]

(1)

Every application to the Land Commissioner for revision under section 82 shall be presented within sixty days from the date on which the proceeding, decision or order to which the application relates was communicated to the applicant:

Provided that the Land Commissioner may admit an application presented within thirty days after the said period if he is satisfied that the applicant had sufficient cause for not presenting it within the said period.

(2)

The power of suo motu revision under section 82, shall be exercised by the Land Commissioner within a period of three years from the date of the order, decision or proceedings referred to in the said section.]

[63. Permission to Public Trust to acquire or to hold land acquired.

(1)

if any Public Trust created before the 1st March 1972 desires to acquire any land in excess of the ceiling area and if any Public Trust created after the 1st March 1972 desires to acquire any land, for the purposes referred to in Section 37-B, it shall make an application in writing to the Government in the Revenue Department in Form 38.

(2)

If any Public Trust created before the 1st March 1972 desires,-

(a)

to hold any land acquired in excess of the ceiling area before the 25th November 2010;

(b)

to hold any land acquired in excess of the ceiling area after the 25th November 2010, for the purposes referred to in Section 37-B, it shall make an application in writing to the Government in the Revenue Department in Form 38,-

(i)

within a period of one hundred and eighty days from the 25th November 2010:

(ii)

within a period of one hundred and eighty days from the date on which such lands were acquired through registered documents:

Provided that the Government in Revenue department may admit an application presented after the expiration of the prescribed period, if the Government in Revenue department is satisfied that the applicant concerned has sufficient cause for not presenting it within the said period.

(3)

If any Public Trust created after the 1st March 1972 desires,-

(a)

to hold any land acquired before the 25th November 2010;

(b)

to hold any land acquired after the 25th November 2010, for the purposes referred to in Section 37-B, it shall make an application in writing to the Government in the Revenue Department in Form 38,-

(i)
within a period of one hundred and eighty days from the 25th November 2010;

(ii)
within a period of one hundred and eighty days from the date on which such land were acquired through registered documents:

Provided that the Government in Revenue department may admit an application presented after the expiration of the prescribed period, if the Government in Revenue department is satisfied that the applicant concerned has sufficient cause for not presenting it within the said period.]

[Substituted by SRO A-35(a)2010 vide G.O.Ms.No. 622, Revenue (LR-3(1)) 25.11.2010, w.e.f. 25.11.2010.]

64.

[Factors to be taken into consideration by Government under section 37-B (3) (c).

[Added by G. O. Ms. No. 1210, Revenue, dated the 4th August 1987.]

- The Government shall, in deciding whether to grant or refuse the permission under sub-section (3) of section 37-B, take into consideration the following factors in addition to the factors specified in sub-section (3) of the said section, namely:-

(a)
(i)
total extent of lands held as on 31st March 1972 by the public trust which was created before 1st March 1972;

(ii)
extent and the nature of use of the lands held by the public trust;

(iii)
extent utilised for educational/hospital purposes and for construction of quarters/play-ground/park by the institution.

(b)
(i)
total extent of land held by the public trust which was created after 1st March 1972 but before the date of commencement of the Amendment Act 1987;

(ii)
extent and the nature of use of the lands held by the institution;

(iii)
extent utilised/proposed to be utilised for educational/hospital purposes and the construction of quarters/play-ground and park by the institution.

(c)
(i)
total extent of land proposed to be acquired by the public trust for educational/hospital purposes after the date of the commencement of the Amendment Act 1987;

(d)
out of the total extent proposed to be acquired, extent of land which the public trust proposes to utilise for educational or hospital purposes;

(e)
total extent proposed to be utilised by the public trust for the construction of quarters, play-grounds and park, internal roads or pathway, etc., in connection with educational or hospital purposes;

(f)
total extent of land proposed to be utilised by the public trust for expanding any existing educational institution or hospital by way of addition to, alteration of, or improvement to, any educational institution or hospital;

(g)
location of the existing or proposed educational institution or hospital.

(h)
the norms with reference to the area prescribed for the establishment of/expansion of/alteration of/improvement to the educational institution/hospital by the University/Head of the Department/Administrative Department in the Government

for running educational institution/hospitals and also the recommendation of the concerned Head of the Department should be sent along with the application;

(i)

Whether educational institution/ hospital are genuine one and whether the lands proposed to be acquired would be utilised for the purpose for which they are given-

(i)

the order and date of the competent authority sanctioning the establishment of educational institution/ hospital;

(ii)

the financial position of the public trusts; and

(j)

if the lands proposed to be acquired for the establishment of educational institution/hospital are under the occupation of tenants, how it is proposed to rehabilitate them who are likely to be evicted.]

65.

[Government to grant permission under section 3-B(2).

[Added by G. O. Ms. No. 1210, Revenue, doted the 4th August 1987.]

(1)

On receipt of the application in Form 38, the Government may, after taking into consideration the factors specified in sub-section (3) of section 37-B and those specified in rule 65, grant the permission sought for.

(2)

The permission so granted shall be, subject to the following conditions, namely:-

(i)

If the land proposed to be acquired by the public trust is required for the establishment of any educational institution or hospital, the land shall be fully utilised for establishment within such period as the Government may, from time to time, by general or special order, specify. In the absence of such an order, the land shall be utilised for such establishment within a period of five years from the date of the order granting permission;

(ii)

If the land proposed to be acquired by the public trust is required for future expansion of any existing educational institution or hospital by way of addition to, alteration of, or improvement to, any educational institution or hospital, the land shall be fully utilised for such expansion within such period as the Government may, from time to time, by general or special order, specify. In the absence of such an order, the land shall be utilised for such expansion within a period of five years from the date of the order granting permission;

(ii)

[(a) If the land held by the public trust is intended for raising agricultural produce to be used for the inmates of the educational and hospital trust, the permission shall be for a period of three years, but the Government may, from time to time, extend the permission for a further period not exceeding three years at a time. A substantial portion of such produce shall be utilised for the main or ancillary purpose of such public trust;]

(iii)

The public trust shall, at all reasonable times, allow the lands to be inspected by an officer authorised by the Assistant Commissioner (Land Reforms) to verify whether the conditions subject to which permission is granted or whether such other conditions as may be specified by the Government by general or special order are complied with and in case they are not complied with, he shall report the matter to the Government, through the Land Commissioner, for such action as the Government may deem fit;

(iv)

The public trust shall furnish any information called for by the Government or by any officer subordinate to the Government;

(v)

In the event of the public trust ceasing, it shall inform the Government about such ceaser and the Government may, either suo motu or on receipt of such information, make such enquiry as they deem fit and cancel the permission:

Provided that before such cancellation, the public trust shall be given a reasonable opportunity of being heard;

(vi)

If, at any time, the public trust is transferred, the transferor and the transferee shall, within thirty days from the date of

such transfer, intimate the fact of transfer to the Government and the Government may, after making such enquiry as they deem fit,-

(a)

pass on order directing that the permission already granted to the transferor shall operate in favour of the transferee on the same terms and conditions subject to which the permission was granted to the transferor, with effect from the date of the transfer for the unexpired period of the permission; or

(b)

cancel the permission after giving the transferee an opportunity of being heard;

(vii)

(a)

If the land in respect of which permission has been granted is used for any purpose other than the purpose for which permission was granted, the public trust concerned shall intimate the diversion of the purpose to the authorised officer within thirty days from the date on which such diversion of purpose takes place;

(b)

the authorised officer shall, on receipt of such intimation, inspect the land and make such enquiry as he deems fit and if he is satisfied that the land is not used for the purpose for which the permission was granted or for any ancillary purpose, he shall report the matter to the Government through the Land Commissioner, for such action as the Government may deem fit;

(viii)

The public trust shall maintain accounts for the income derived from the Educational Institutions/hospitals for which permission was granted and for the expenditure thereon. The expenditure shall be supported by authenticated vouchers. The public trust shall at all reasonable times, allow such account and vouchers to be inspected by the Assistant Commissioner (Land Reforms) or an officer authorised by him to verify whether the income derived from the educational institution/hospital for which the permission was granted, is utilised for the purpose for which the permission was granted and in any case where such officer is satisfied that any portion of the income derived from the educational institution or hospital is utilised for any purpose other than the purpose for which permission was granted, he shall report the matter to the Government through the Land Commissioner, for such action as the Government may deem fit;

(ix)

The public trust shall comply with such other conditions as the Government, may, from time to time, by general or special order specify;

(x)

In the event of the cancellation of permission by Government for violation of any of the conditions subject to which the permission is granted, the provisions of the Act shall apply to the land in respect of which the permission was granted and action shall be taken under that Act accordingly by the authorities concerned.]

Form 1

[Omitted]

Form 2

(See rule 5)

Form of Return to be Furnished under Section 8(1) of the Tamil Nadu Land Reforms (Fixation Of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

)

(1)

Name and address of the person by whom the land is held or deemed to have been held.

(2)

Name and address of the person furnishing the return.

(3)

(a)

If the return is not furnished by the person holding the land, is the person's written authorization to furnish the return enclosed?

(b)

If the person specified in item (1) is a minor, lunatic, idiot or is subject to a like disability, is the person specified in item (2)

(i)

his guardian;

(ii)

his manager; or

(iii)

the person in charge of such person or of the property of such person ?

(c)

If the person specified in item (1) is a company or other corporate body, is the person specified in item (2) competent to act for such company or body in this behalf?

(d)

If the return relates to a family, is the person specified in item (2), in management of such family or of the property of such family ?

(4)

If the return relates to a family, particulars of the members of the family-

As on the 15th February 1970 Name and Age

As on the Notified date Name and Age

(i) Head of the family

1

(ii) Wife/husband

1

(iii) Minor sons

1

(iv) Unmarried daughters.

2

(v) Minor grandsons in the male line whose father and mother are dead.

1

(vi) Unmarried grand-daughters in the male line whose father and mother are dead.

1

(vii)

Whether in the case of minor sons or minor grandsons governed by Hindu Law, a partition by means of a registered instrument has taken place or in respect of whose family properties a preliminary decree for partition has been passed before the notified date.

(viii)

Whether in the case of unmarried daughters and unmarried grand-daughters governed by Hindu Law, in whose favour any land had been voluntarily transferred by either of whose parents or grand-parents on account of natural love and affection or in whose favour a preliminary decree for partition has been passed before the notified date.

(ix)

Whether in the case of minor sons, unmarried daughters, minor grand-sons and unmarried grand-daughters governed by any law other than Hindu Law, in whose favour any land, has been voluntarily transferred by either of whose parents or grand-parents on account of natural love and affection or in whose favour a preliminary decree for partition has been passed before the notified date.

(x)

Whether after the 15th February 1970, but before the notified date, any land has been partitioned by means of a registered instrument, and if so, the extent of the land so partitioned.

(xi)

Whether after the 15th February 1970, but before the notified date, any land has been voluntarily transferred by any parent or grand-parent on account of natural love and affection, to any minor son, unmarried daughter, minor grand-son

or unmarried grand-daughter in the male line, and if so, the extent of the land so transferred.

(xii)

Whether after the 15th February 1970, but before the notified date, any voluntary transfer of land to any educational institution or hospital of a public nature solely for the purpose of such institution or hospital has been made, and if so, the extent of the land so transferred.

(5)

Have particulars of all land held or deemed to have been held in the State of Tamil Nadu, by the person specified in item (1) on the 15th February 1970, been furnished in Annexure A ?

(6)

(a)

Is there any encumbrance on the land included in Annexure A and if so

(b)

Have particulars of the encumbrance been furnished in Annexure B?

(7)

(a)

Is there any litigation pending in respect of any land included in Annexure A and, if so,

(b)

have particulars of the litigation been furnished in Annexure-C?

(8)

(a)

Is there any arrears of land revenue in respect of any land included in Annexure A and, if so,

(b)

have particulars of such arrears and of the proceedings pending for collection of the arrears been furnished in Annexure D ?

(9)

(a)

Has any land included in Annexure A been leased out to tenants and, if so,

(b)

have particulars of such land been furnished in Annexure E ?

(10)

(a)

Is exemption claimed under section 73 of the Act in respect of any land included in Annexure A and, if so,

(b)

have particulars of such land been furnished in Annexure F ?

(11)

(a)

Is permission under section 27, 31 or 43 of the Act required in respect of any land included in Annexure A and, if so,

(b)

have particulars of such land been furnished in Annexure H ?

(12)

(a)

Has any land included in Annexure A been disposed of after the 15th February 1970 and, if so,

(b)

have particulars of such land been furnished in Annexure I ?

I have furnished in Annexure J, the particulars of land which is desired to be retained within the ceiling area and the land which is desired to be declared as surplus.

I have declared that to the best of my knowledge and belief, the information furnished in the form and in Annexures A to J is a full and complete information of the entire holding of the person or family specified in item (1) within the State of Tamil Nadu and that the said person or family or any member of the family does not hold any other agricultural land either individually or jointly with others within the State of Tamil Nadu.

Place:

Date:

Signature of the person furnishing the return.

To

The Authorized Officer.....

Form 2

Annexure A

Particulars of all land held or deemed to have been held on the 15th february 1970

Serial number

District

Taluk

Village

Survey number

Government or inam

Wet or dry

(1)

(2)

(3)

(4)

(5)

(6)

(7)

If irrigated by Government Source of irrigation,
name of such source and whether by direct flow or by lift

Extent

Assessment

Extent in standard acres

Details of building (Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit bearing or timber or young
ones)

Remarks

(8)

(9)

(10)

(11)

(12)

(13)

(14)

A C. Rs. P.

Note. - (1) The particulars in this Annexure should be furnished in two parts under different sections as shown below:-

Section I - Land held as owner.

Section II - Land held as possessory mortgagee.

Section III - Land held as tenant.

Section IV - Land held as intermediary.

Section V - Land held as trust land in which any interest is held.

Section VI - Sridhana land held by female members of the family.

(2)

In the case of land included in sections II, III, and IV, the name and address of the possessory mortgagor or the land owner or the tenant, as the case may be, with the particulars of the period of lease, etc. and in the case of trust land, the particulars of interest reserved in favour of the person concerned or of any member of his family shall be furnished in column (14).

(3)

If the land for which particulars are furnished above, is not a registered sub-division, boundaries of it, for any identification should be mentioned in column (14).

Place:

Date:

Signature of the person furnishing the return.

Form 2

Annexure B

Particulars of encumbrances on the land included in annexure A

Serial number

District

Taluk

Village

Survey number

Extent

Particulars of encumbrances with the name and address of the creditors

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

AC

Place:

Date:

Signature of the person furnishing the return.

Form 2

Annexure C

Particulars of any Pending Litigation in Respect of the land included in Annexure A

Serial number

District

Taluk

Village

Survey number

Extent

Particulars of the litigation pending, the case number, the name of the Court and the name of the parties

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

AC

Place:

Date:

Signature of the person furnishing the return.

Form 2

Annexure D

Particulars of the arrears of land Revenue or Attachment or Restraint on Alienation in Force in Respect of Land Included in Annexure A

Serial number

District

Taluk

Village

Survey number

Extent

Amount of arrears

Particulars of proceedings pending for collection

Particulars of attachment

Particulars of restraint on alienation

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

AC

Rs. P.

Place:

Date:

Signature of the person furnishing the return.

Form 2

Annexure E

Particulars of Land Leased out to Tenants

Serial number

District

Taluk

Village

Survey number

Extent

Name and address of the tenant

Date of expiry of tenancy

Rent payable

Whether the tenant himself cultivates, the land leased out and if not, the name of the person cultivating such land

Remarks

(1)

(2)
(3)
(4)
(5)
(6)
(7)
(8)
(9)
(10)
(11)
AC
Place:
Date:
Signature of the person furnishing the return.
Form 2
Annexure F
Particulars of Land in Respect of Which Exemption is Claimed Under Section 73 of The Act
Serial number
District
Taluk
Village
Survey number
Extent
Purpose for which the land is now being used and
from what date
Clause of section 73 under which exemption is
claimed
Remarks
(1)
(2)
(3)
(4)
(5)
(6)
(7)
(8)
(9)
AC
Form 2
Annexure G
(Omitted)
Form 2
Annexure H
Particulars of Land For Which Permission is Required under Section 31 of the Act
(1)
Particulars of land-
S.No
District
Taluk
Village
Survey number

Extent

Purpose for which the land is to be used

If the lands are required for extension or

ancillary purpose of a plantation in existence of 15th February
1970 in any area

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Whether the land is interspersed among such
plantations

Whether the land is contiguous to any such
plantation

(a)

(b)

(2)

If the land is required for dairy farming or livestock breeding-

(a)

Number of heads of cattle owned and their breed.

(b)

Special features of the cattle.

(c)

Status and previous experience of the person.

(d)

Other particulars, if any.

(3)

If the land is required for extension or for ancillary purposes of plantation, extent of plantation in existence on the 15th
February, 1970

Place:

Date:

Signature of the person furnishing the return.

Form 2

Annexure 1

Particulars of Land included In Annexure A Which Have Been Disposed of on After the 15th February 1970.

Serial numbers

District

Taluk

village

Survey number

Extent

How disposed of

To whom disposed of and his address

Date of disposal

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

A.C

(7)

(8)

(9)

(10)

Place:

Date:

Signature of the person furnishing the return.

Form 2

Annexure J

Particulars of Land Desired to be Retained Within the Ceiling Area and Particulars of Land Desired to be Declared as Surplus Land.

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

If irrigated by Government source of irrigation

name of such source and whether by direct flow or by life

Extent

Assessment

Extent in standard acres

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

A.C

Rs.P.

Note. - The particulars in this Annexure should be furnished in two parts under different sections as shown below:-

Part A ? . - Lands to be retained within the ceiling area-

Section I - Land held as owner.

Section II - Land held as possessory mortgagee.

Section III - Land held as tenant.

Section IV - Land held as intermediary.

Section V - Land held as trust land in which any interest is held.

Section VI - Sridhana land held by female members of the family.

Part B ? Lands to be declared as surplus-

Section I - Land held as owner.

Section II - Land held as possessory mortgagee.

Section III - Land held as tenant.

Section IV - Land held as intermediary.

Section V - Land held as trust land in which any interest is held.

Section VI - Sridhana land held by female members of the family.

Form 2-A

[See rule 5-A of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Form of Notice Under the Proviso to Explanation III to Section 8(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

)

To

Name.....

Address.....

Sri has filed a return in Form 2/16/17 under section 8(1)/21(1)/21(2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu 58 of 1961) as the person in management of the family of which you are a member, showing the particulars of the land held by him and the members of his family as on (...). The said return is binding on you and the other members of the family under Explanation III to section 8 (1) of Tamil Nadu Act

58 of 1961

. You are hereby informed that you may make any representation in respect of the return on or before (....) .id adduce any documentary or oral evidence in respect thereof on the (date, time and place) which representation and evidence will be taken into consideration before the preparation of the draft statement under section 10 (1) of the Act. If no representation is made or no evidence is adduced, it will be assumed that you have no representation to make and that you have no evidence to adduce and further action will be taken on that assumption.

You may peruse the said return in my office in the presence of the Superintendent during working hours on or before the date of hearing.

Place:

Date:

Authorized Officer.

Form 3

[See rule 7 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rule, 1962]

Form of Notice Under Section 9(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

)

To

Name of person and address,

Whereas you have failed to furnish a return in respect of² your/the firm's¹ the family's I, the tarwad's/the illom's/the society's/the association's/the company's holdings in the State of Tamil Nadu with all the required particulars within the time specified in section 8(1) of the Tamil Nadu Land Reforms (Fixatio.

You are hereby required to prepare a true and correct return of

your/the firm's/the family's/the tarwad's/the illom's/the society's/the association's/the company's holdings as on the 15th February 1970 in Form 2 and deliver it to me or cause it to be delivered at my office duly signed by

you/you on behalf of the firm/family/tarwad/illom/society/ association/ company, on or before# failing which you will be liable to a penalty under section 85 of the said Act.

*Whereas the return furnished by you under section 8(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), is** incomplete/incorrect as detailed

You are hereby required to furnish** the following additional particulars to make the return complete/the true particulars in respect of the following matters:-

##.....on or before#.....failing which, you will be liable to a penalty under section 85 of the said Act.

Given under my hand and seal this the.....day of 20....

*Strike out the paragraph not applicable.

* Strike out the. paragraph not applicable.

** Strike out the portion not applicable.

** Strike out the portion not applicable.

Here enter the date, month and year.

* Strike out the paragraph not applicable.

** Strike out the portion not applicable.

@ Here enter briefly details how the return is incomplete or incorrect.

** Strike out the portion not applicable.

Here specify the matters.

Here enter the date, month and year.

Place:

Date:

(Seal)

Signature of the Authorized Officer.

Form 4

[See rule 10 (1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Notice Under Section 9 (2) (B)Section 61(3)(B)Section 102(2)(B) Of The Tamil Nadu Land Reforms (Fixation Of Ceiling On Land) Act, 1961 (Tamil Nadu Act 58 Of 1961).

To

Name.....

Address.....

Whereas, under rule 9 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962, certain particulars have been obtained, it is proposed to take further action under the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), on the basis of the said particulars. The said particulars are furnished in the statement appended. You are hereby informed that you may make any representation in the matter on or before (date), and adduce any documentary or oral evidence on the.....(date, time, and place) which representation and evidence will be taken into consideration before orders are passed. If no representation is made or no evidence is adduced, it will be assumed that you have no representation to make and that you have no evidence to be adduced and orders will be passed on that assumption.

Place:

Date:

Authorized Officer.

Form 5

[See rule 11 (2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Form of Summons under the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

)

Summons to appear in person and/or to produce documents.

To

Whereas your attendance is necessary to give attendance;

And Whereas the following documents (here describe the documents in sufficient detail to permit of their identification with reasonable certainty) are required,

And With reference to an inquiry under the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil

Nadu Act

58 of 1961

) (here enter briefly the subject of the inquiry), now pending before me, you are hereby summoned

to appear in person

to produce, or cause to be produced, the said documents

before me on the day of 20 at O'clock at (place) and not to depart thence until permitted by me.

Given under my hand and seal, this day of 20.....

Place:

Date:

Seal

Signature Official designation.

Form 6

[See rule 12(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

The draft statement under section 10(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

) in respect of the land held by* is hereby published. Any objection received from any person within sixty days from the date of the publication of the draft statement in the [Fort St. George Gazette]

[Now Tamil Nadu Government Gazette.]

will be duly considered by the Authorized Officer before final orders are passed in the matter.

Authorized Officer.

* Here enter the name and address of the person.

Draft Statement Under Section 10(1) Of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

).

(1)

Name and address of the person.

(2)

If the person in item (1) above is a family, particulars of the members of the family on the notified date the date of preparation of the statement.

(i) Head of the family

Name

Age

(ii)

Wife/husband

(iii)

Minor sons.

(iv)

Unmarried daughters.

(v)

Minor grandsons in the male line whose 'father and mother, are dead.

(vi)

Unmarried grand-daughters in the male line whose father and mother are dead.

(vii)

Whether in the case of minor sons or minor grandsons governed by Hindu Law a partition by means of a registered instrument has taken place or in respect of whose family properties a preliminary decree for partition has been passed before the notified date.

(viii)

Whether in the case of unmarried daughters and unmarried grand-daughters governed by Hindu Law, in whose favour

any land had been voluntarily transferred by either of whose parents or grand-parents on account of natural love and affection or in whose favour a preliminary decree for partition has been passed before the notified date.

(ix)

Whether in the case of minor sons, unmarried daughters, minor grand-sons and unmarried grand-daughters governed by any law other than Hindu Law, in whose favour any land has been voluntarily transferred by either of whose parents or grand-parents on account of natural love and affection or in whose favour a preliminary decree for partition has been passed before the notified date.

(x)

Whether after the 15th February 1970, but before the notified date, any land has been partitioned by means of a registered instrument, and if so, the extent of the land so partitioned.

(xi)

Whether after the 15th February 1970, but before the notified date, any land has been voluntarily transferred by any parent or grand-parent on account of natural love and affection, to any minor son, unmarried daughter, minor grand-son or unmarried grand-daughter in the male line, and if so, the extent of the land so transferred.

(xii)

Whether after the 15th February 1970, but before the notified date, any voluntary transfer of land to any educational institution or hospital of a public nature solely for the purpose of such institution or hospital has been made, and if so, the extent of the land so transferred.

(3)

The particulars of all land held by the person including stridhana land held by each female member of the family are furnished in Annexure A.

(4)

The particulars of encumbrances on the land specified in Annexure A together with the names of the creditors are furnished in Annexure B.

(5)

The particulars of the land-

(a)

interspersed among plantations, or

(b)

contiguous to any plantation- in existence on the 15th February 1970, in any area and which land the person referred to in item (1) desires to hold for extension, or ancillary purposes, of the plantation are furnished in Annexure D.

(6)

The particulars of the land specified in Annexure A in respect of which any question of title is pending before a competent Court, or the Land Tribunal, or other authority are furnished in Annexure F.

(7)

The particulars of the share of the person or any member of the family in any land held by an agricultural company, co-operative society or Land Mortgage Bank are furnished in Annexure G.

(8)

The particulars of the land which the person desires to retain within the ceiling area, the extent of the ceiling area of the person and the land which may be comprised within the ceiling area are furnished in Annexure H.

(9)

The particulars of the land proposed to be declared as surplus land are furnished in Annexure I.

(10)

The particulars of the land specified in Annexure A which is held by tenant and the name and address of the tenant are furnished in Annexure J.

(11)

The particulars of the land held by the person specified in item (1) to which the provisions of the Act do not apply by virtue of section 73 are furnished in Annexure- K

Place:

Date:

Authorized Officer.

Form 6

Annexure A

Particulars of All Land Held or Deemed to Have Been Held on the 15th February, 1970/held On.....

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

If irrigated by Government source of irrigation

name of such source and whether by direct flow or by life

Extent

Assessment

Extent in standard acres

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

A.C.

Rs. P.

A.C

Note. - The particulars in this Annexure should be furnished under different sections as shown below:-

Section I. - Land held by the person as owner.

Section II. - Land held by the person as possessory mortgagee. Section III. - Land held by the person as tenant.

Section IV. - Land held by the person as intermediary.

Section V. - In respect of interest either in the land held by a trust or in the income from such land reserved in the person's favour or in favour of any member of the family the extent of land declared by the authorized officer under section 6.

Section VI. - Stridhana land held by female members of the family.

Place:

Date:

Authorized Officer.

Form 6

Annexure B

Particulars of Encumbrances on the Land Included In Annexure A.

Serial numbers

District

Taluk

village

Survey number

Extent

Particulars of encumbrance with the and address
of the creditors

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

A.C

Place:

Date:

Authorized Officer.

Form 6

Annexure C

[Omitted]

Form 6

Annexure D

Particulars of Land for Which Permission of Land Board Is Required under section 31.

Serial numbers

District

Taluk

village

Survey number

Extent

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

A.C.

Note. - The particulars in this annexure should be furnished under two sections as shown below:-

Section I - Land interspersed among plantations.

Section II - Land contiguous to any plantation.

Place:

Date:

Authorized Officer.

Form 6

Annexure E

[Omitted]

Form 6

Annexure F

Particulars of Land In Respect of Which any Question of Title is Pending Before A Competent Court, or the Land Tribunal or other Authority.

Serial numbers

District

Taluk
village
Survey number
Extent
Particulars of the litigation pending,, with the
names of parties and the number of the case and the authority
before which litigation is pending
Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

A.C

Place:

Date:

Authorized Officer.

Form 6

Annexure G

Particulars of Share of the Person or any Member of the Family In the Land Held by an Agricultural Company,
Co-Operative Society or Land Mortgage Bank

Serial numbers

District

Taluk

village

Survey number

Extent

Name of the agriculture company, cooperative
Society or land Mortgage bank holding the land

Extent of share

Name of the holder of the share

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

A.C

Place:

Date:

Authorized Officer.

Form 6

Annexure H

(1)

The following are the particulars of the lands which the person specified in item (1) of Form 6 desires to retain within the ceiling area:-

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

If irrigation by Government Source of irrigation

name of such source and whether by direct flow or by life

Extent

Assessment

Extent in standard acres

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

A.C

Rs. P.

(2)

The extent of the ceiling area of the said person is... Standard acres.

(3)

The following are the particulars of the land proposed to be declared as comprised within the ceiling area of the said person:-

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

If irrigation by Government Source of irrigation

name of such source and whether by direct flow or by life

Extent

Assessment

Extent in standard acres

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

A.C

Rs. P.

Place:

Date:

Authorized Officer.

Note. - The particulars in the Annexure should be furnished under different sections as shown below:-

Section I - Land held by the person as owner.

Section II - Land held by the person as possessory mortgagee. Section III - Land held by the person as tenant.

Section IV - Land held by the person as intermediary.

Section V - Land held, by a trust in which the person has interest, as declared by the Authorized Officer under section 6.

Section VI - Stridhana land held by female members of the family.

Form 6

Annexure I

Particulars of the Land Proposed to be Declared as Surplus

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

If irrigated by Government source of irrigation,

name of such source and whether by direct flow or by life

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Extent

Assessment

Extent in standard

Boundaries

Details of (kachcha or pucca), masonry wells (in use or not in use), tube wells in use

Number of trees (fruit trees, or timber, or young ones)

Particulars of tenant

Particulars of encumbrances with name and address of the creditors

Remarks

(9)

(10)

(11)

(12)

(13)

(14)

(15)

(16)

(17)

A.C

Rs. P.

Place:

Date:

Authorized Officer.

Note. - The particulars in this Annexure should be furnished under different sections as shown below:-

Section I - Land held by the person as owner.

Section II - Land held by the person as possessory mortgagee. Section III - Land held by the person as tenant.

Section IV - Land held by the person as intermediary.

Section V - Land held by a trust in which the person has interest, as declared by the Authorized Officer under section 6.

Section VI - Stridhana land held by female members of the family.

Form 6

Annexure J

Particulars of the Land Held by Tenant.

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

If irrigated by Government source of irrigation,
name of such source and whether by direct flow or by life

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Extent

Assessment

Extent in standard acres

Name and address of the tenant

Date of expiry of tenancy

Rent payable

Whether the tenant himself cultivates the land

leased out and if not, the name of the person cultivating such
land

Remarks

(9)

(10)

(11)

(12)

(13)

(14)

(15)

(16)

A.C

Rs. P.

Place:

Date:

Authorized Officer.

Form 6

Annexure K

Particulars of the Land Exempt under Section 73.

Serial numbers

District

Taluk

village

Survey number

Extent

Purpose for which the land is now being used and

from what date

Clause of section 73 under which exempt

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Place:

Date:

Authorized Officer.

Form 6

Annexure L

[Omitted]

Form 7

[See rule 12(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Notice under Section 10(5) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

).

Notice is hereby given that the draft statement in Form 6 in respect of the land held by.....(here enter name and address) has been published. A copy of the said draft statement is appended. Under section 10(5) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

), objections, if any, to the draft statement shall be preferred before the undersigned within thirty days from the date of

service of this notice.

Place:

Date:

Authorized Officer.

To

(Name of the person on whom the notice should be served.)

Form 8

[See rule 13(2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Notice of Hearing of Objection under Section 10(5) of The Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

)

To (Name and address of the person)

The Authorized Officer.....will hold an enquiry into the objection filed by you/by * in respect of the draft statement under section 10 (1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

) relating to the land held by.....

The enquiry will be held at O'clock on the day of 20 at (place).

You may appear on that day either in person or by authorized agent and make any representation or adduce documentary or oral evidence regarding the said objection.

Place:

Date:

Authorized Officer.

* Here enter the names of the persons who have filed their objections, if the notice is issued to a person other than the objector. Copies of the objections should be enclosed in such cases.

Form 8-A

[See rule 14(2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Form of Notice Inviting objections to Demarcation of Land to be Declared as Surplus

To

Name:

Address:

Whereas, Sri has opted to declare as surplus land, his share or part thereof in the land held by him jointly with you, as detailed in the Schedule below, it is proposed to demarcate such share or part as surplus land. You are hereby informed that you may make any representation in the matter on or before the and adduce any documentary or oral evidence on the...../(date, time and place). If no representation is made or no evidence is adduced, it will be assumed that you have no representation to make and that you have no evidence to be adduced and the demarcation as proposed will be made on that assumption.

Schedule

Name of the District and taluk

Number and name of the village

Survey number and subdivision

Whether it is a whole field or a recognized sub-division

Total extent of the field noted in column (3)

Extent of the share or part and extent in terms of acres) proposed to be demarcated as surplus

Boundaries of the land to be demarcated as surplus

North

East

West

South

(Note: Boundaries to be given only in the case of
part fields)

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)

Place:

Date:

Authorized Officer.

Form 8-B

[See rule 14(4) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Form of Notice Informing The Date of Demarcation of Land to be Declared as Surplus.

To

Name:

Address:

Whereas, it has been proposed to declare a portion/portions of the land/lands detailed in the Schedule as surplus, this is to inform you that the said portion/ portions will be demarcated on the (date) in accordance with the provisions contained in section 10(3) and (4) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

). You are requested to be present during the time and at the place of demarcation. If you fail to be present at the time and place, the demarcation will be made as proposed.

Schedule 2

Name of the District and taluk

Number and name of the village

Survey number and sub-division

Whether it is a whole field or a recognized
subdivision

Total extent of the field noted in column (3)

Extent of the share or part and extent (in terms
of acres) proposed to be demarcated as surplus

Boundaries of the land to be demarcated as
surplus

North

East

West

South

(Note: Boundaries to be given only in the case of
pan fields)

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)

Place:

Date:

Authorized Officer.

Form 9

[See rule 17(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Final Statement Under Section 12/section 14 Of The Tamil Nadu Land Reforms (Fixation Of Ceiling On Land) Act, 1961
(Tamil Nadu Act 58 Of 1961)

(1)

Name and address of the person.

(2)

The particulars of the entire land held by the person specified in item (1) above on the 15th February 1970/on are as follows:-

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

Extent

Assessment

Extent in standard acres

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C

Rs. P.

AC

(3)

The ceiling area of the person specified in item (1) is standard acres.

(4)

The land, the particulars of which are furnished below, is declared to be retained within the ceiling area of the person specified in item (1):-

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

Extent

Assessment

Extent in standard acres

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C

Rs. P.

AC

(5)

The land, the particulars of which are furnished below is declared as surplus:-

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

If irrigated by Government source of irrigation,

name of such source and whether by direct flow or by lift

Extent

Assessment

Extent in standard acres

Boundaries

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

A.C

Rs. P.

Details of building (Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Numbers of trees (fruit trees, or timber or young ones)

Particulars of tenants

Particulars of encumbrances with name and address of the creditors

Remarks

(13)

(14)

(15)

(16)

(17)

Place:

Date:

Authorized Officer.

Form 10

[See rule 18 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Notice to be Issued Before Rectification of bona fide Mistakes and Clerical Errors.

Before the.....(Name of authority).

To

Take notice that an application has been filed before the undersigned by.....(Name and address) that it is proposed under section of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), to rectify a bona fide mistake/clerical or arithmetical mistake/noticed in the final statement published imder section.....in the compensation assessment roll as published finally under section 50(5) or 50(6) in the decision already made under section.....as detailed below:-

(Here enter an abstract of the matter.)

In case you desire to make any representation in this behalf, you may appear in person or by authorized agent before the undersigned at..... (hour) on (date) at (place)

Office:

Station:

Date:

Signature and designation of the authority or officer.

Form 11

[See rule 19(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Rules, 1962]

Application under Section 17(3) of The Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

)

To

The Authorised Officer at.....

1. Name(s) and address(es) of the petitioner(s).

2. Name(s) and address(es) of the respondent(s).

3. Whether the petitioners) is/are tenant(s) or land owner(s) and if tenanc(s) whether, cultivating tenant(s) / intermediary / intermediaries.

4. Particulars of land-

(i)

Survey number and sub-division number (if unsurveyed, description);

(ii)

Government or inam;

(iii)

Wet or dry;

(iv)

Extent;

(v)

Boundaries-

East

South

West

North;

(vi)

Assessment, cess, additional surcharge and charge for water;

(vii)

Amount of fair rent as determined by the Rent Court;

(viii)

Village and taluk in which the land is situated.

5. (a) In the case of wet land -

(i)

whether it is a single-crop or double-crop land;

(ii)

the existing rent;

(b)

In the case of dry land-

(i)

the crop or crops raised;

(ii)

the existing rent.

6. Additional facts and information which the petitioner(s) may like to furnish.

7. Amount of compensation payable under section 17 (2).

I/We the above named petitioner(s) do hereby declare that the facts stated above are all true to the best of my/our knowledge and belief.

Place:

Date:

Petitioner(s)

Form 12

[See rule 20 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Under sub-section (1) of section 18 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), as amended by Tamil Nadu Act the Governor of Tamil Nadu hereby notifies that the surplus land specified in the Schedule below is required for a public purpose. If any further details about the land are required, they can be had from the office of the Authorised Officer (Land Reforms) during office hours.

The Schedule

Particulars of the Surplus Land

Name and address of the land holder.

S. No.

Survey Number

Wet or Dry

Extent

Assessment

Details of Structures, Wells and trees

Name and address of other persons interests in the land and the nature of such interest

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

AC

Rs. P.

.....district.....taluk.....village

1.

2.

3.

Form 13

[See rule 23 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Application for Continuance of Possession of Land Under Section 18 (5) (A) of The Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

).

(1)

Name and address of the applicant.

(2)

Particulars of the land for which lease (or renewal of lease) is required

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

If irrigated by Government source of irrigation,
name of such source and whether by direct flow or by lift

Extent

Assessment

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

AC

Assessment

Name of crop raised on the land

Details of building! Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber or young ones)

The period of tenancy agreement under which the land was previously held

Remarks

(11)

(12)

(13)

(14)

(15)

(16)

Rs. P

(3)

Particulars of land if any, other than the land mentioned under item 2 above held by the applicant and the other members of his family:-

Serial numbers

District

Taluk

village

Survey number

Boundaries

Government or inam

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Wet or dry

If irrigated by Government source of irrigation,
name of such source and whether by direct flow or by lift

Extent

Assessment

Details of building (Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber or young
ones)

Remarks

(8)

(9)

(10)

(11)

(12)

(13)

(14)

A.C

Rs.p.

Note. - The particulars under this item should be furnished under different sections as shown below:-

Section I - Land held as owner.

Section II - Land held as tenant.

Section III - Land held as possessory mortgagee.

Section IV - Land held in any other capacity.

(6)

Particulars of the members of the applicant's family.

Name

Age

Relationship to the applicant.

.....
.....
.....
.....
.....
.....

(7)

Any other details which the applicant may like to furnish.

I hereby declare that the particulars furnished in the application are, to the best of my knowledge and belief, true and correct.

I further declare that, in the event of the land being leased out to me, I shall abide by the terms and conditions of the lease and also all other provisions relating thereto contained in the Tamil Nadu Land Reforms (Fixation of Ceiling and Land) Rules, 1962.

Place:

Date:

Signature of the applicant.

Form 14

[See rule 24 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Rules, 1962]

Application for Permission to Continue in Possession of land under Section 18(5)(B) of the Tamil Nadu-Land Reforms (Fixation Of Ceiling on Land) Act, 1961 (Tamil Nadu Act 58 of 1961

)

(1)

Name and address of the applicant (co-operative society, Land Mortgage Bank or agricultural company).

(2)

Particulars of the land for which lease (or renewal of lease) is required:-

Serial numbers

District

Taluk

Village

Survey number

Boundaries

Government or inam

Wet or dry

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

If irrigated by Government source of irrigation,
name of such source and whether by direct flow or by lift

Extent

Assessment

Name of crop raised on the land

Details of building (Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber or young

ones)

Remarks

(9)

(10)

(11)

(12)

(13)

(14)

(15)

A .C

Rs. P.

(3)

Particulars of land, other than the land mentioned in item (2), held by the applicant:-

Serial numbers

District

Taluk

Village

Survey number

Boundaries

Government or inam

Wet or dry

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

If irrigated by Government source of irrigation,
name of such source and whether by direct flow or by lift

Extent

Assessment

Details of building (Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber or young

ones)

Remarks

(9)

(10)

(11)

(12)

(13)

(14)

A.C

Rs. P.

(4)

Number of shareholders.

(5)

Any other details which the applicant may like to furnish.

I hereby declare that the particulars furnished in the application are, to the best of my knowledge and belief, true and

correct.

I further declare that, in the event of the land being leased out to the applicant, the applicant shall abide by the terms and conditions of the lease and also all other provisions relating thereto contained in the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962.

Place:

Date:

Signature of the person filing the application

Designation.....

Form 15

[See rule 25 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Form Of Declaration To Be Made And Filed By The Transferee Under Section 19(1) Of The Tamil Nadu Land Reforms (Fixation Of Ceiling On Land) Act, 1961 (Tamil Nadu Act 58 Of 1961)

1. (a) Name of the transferor.

(b)

Address in full.

2. (a) Name of the transferee (declarant).

(b)

Address in full.

3. Particulars of the land to which the document relates: -

Serial numbers

District

Taluk

Registered district and sub-district

village

Survey number

Government or inam

Wet or dry

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

If irrigated by Government source of irrigation,

name of such source and whether by direct flow or by lift

Extent

Assessment

Boundaries

Extent in standard acres

Nature of transfer

Remarks

(9)

(10)

(11)

(12)

(13)

(14)

(15)

A.C

Rs. P.

4. Whether the total extent of land held by the transferee including the land transferred exceeds the ceiling area ?

5. Particulars of all land already held by the transferee.

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

(1)

(2)

(3)

(4)

(5)

(6)

(7)

If irrigated by Government source of irrigation,

name of such source and whether by direct flow or by lift

Extent

Assessment

Extent in standard acres

Boundaries

Remarks

(8)

(9)

(10)

(11)

(12)

(13)

A. C

Rs. P.

Note. - The particulars in this item should be furnished under different sections as shown below:-

Section I - As owner.

Section II - As possessory mortgagee.

Section III - As tenant.

Section IV - As intermediary.

Section V - Trust land in which any interest is held.

Section VI - Land held by any member of the transferee's family.

6. Designation and address of the authorized officer within whose jurisdiction the land or the major part thereof which is the subject - matter of transfer, is situated.

I declare that to the best of my knowledge and belief, the information furnished above is correct and complete, that the particulars of land held by me as well as by the members of my family are truly stated.

Signature of the declarant.

Declarant's or his authorized agent's identity proved by

Name Occupation Address.

(1)

.....

(2)

.....

Explanation. - If the declarant does not file the declaration in person, the signature of the declarant shall be attested by a

Gazetted Officer, Tahsildar, Magistrate or person empowered to attest an affidavit or vakalatnama.

Particulars to be furnished by the Registering authority:-

Name of the office of registration.....

Date of registration of the document.....

Number of the document.....

Place:

Date:

Signature of the person filing the application

Form 16

[See rule 26(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Form of Return to be Furnished under Section 21(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

)

(1)

Name and address of the person by whom the land is held.

(2)

Name and address of the person furnishing the return.

(3)

If the return is not furnished by the person specified in item (1), what is the authority for the person in item (2) to furnish the return ?

(4)

If the person in item (1) is a member of a family, the particulars of the members of the family-

Name

Age

(i) Head of the family.

(ii) Wife/Husband.

(iii) Minor sons.

1.....

.....

2

.....

(iv) Unmarried daughters.

(v) Minor grandsons in the male line whose

father and mother are dead.

1

.....

2

.....

(vi) Unmarried grand-daughters in the male line

whose father and mother are dead.

1

.....

2.....

.....

(vii)

Whether in the case of minor sons or minor grandsons governed by Hindu Law, a partition by means of a registered instrument has taken place or in respect of whose family properties a preliminary decree for partition has been passed before the notified date.

(viii)

Whether in the case of unmarried daughters and unmarried grand-daughters governed by Hindu Law, in whose favour

any land had been voluntarily transferred by either of whose parents or grand-parents on account of natural love and affection or in whose favour a preliminary decree for partition has been passed before the notified date ?

(ix)

Whether in the case of minor sons, unmarried daughters, minor grandsons and unmarried grand-daughters governed by any law other than Hindu Law, in whose favour any land has been voluntarily transferred by either of whose parents or grand-parents on account of natural love and affection or in whose favour a preliminary decree for partition has been passed before the notified date ?

(x)

Whether after the 15th February 1970, but before the notified date, any land has been partitioned by means of a registered instrument, and if so, the extent of the land so partitioned.

(xi)

Whether after the 15th February 1970, but before the notified date, any land has been voluntarily transferred by any parent or grand-parent on account of natural love and affection, to any minor son, unmarried daughter, minor grand-sons or unmarried grand-daughter in the male line, and if so, the extent of the land so transferred.

(xii)

Whether after the 15th February 1970, but before the notified date, any voluntary transfer of land to any educational institution or hospital of a public nature solely for the purpose of such institution or hospital has been made, and if so, the extent of the lands so transferred.

(5)

(a)

Have particulars of all land already held by the person been furnished in Annexure A?

(b)

If the person specified in item (1) is a member of a family have the particulars been furnished in Annexure A in respect of all land already held by such family and all its members ?

(6)

(a)

Have particulars showing-

(i)

the date on which the ceiling area was exceeded as a result of acquisition in the manner specified in section 21(1);

(ii)

the extent of the land acquired; and

(iii)

the manner of acquisition been, furnished in Annexure B ?

(b)

Have the copies of documents, if any, under which the lands were acquired been furnished ?

(7)

(a)

Is there any encumbrance in respect of any land included in Annexures A and B and, if so,

(b)

Have particulars of the encumbrance been furnished in Annexure C?

(8)

(a)

Is there any litigation pending in respect of any land included in Annexures A and B and, if so,

(b)

by have particulars of the litigation been furnished in Annexure D?

(9)

(a)

Is there any arrears of land revenue in respect of any land included in Annexures A and B and, if so,

(b)

have particulars of such arrears and of the proceedings pending for collection of the arrears been furnished in Annexure E ?

(10)

(a)

Has any land included in Annexures A and B been leased out to tenants and, if so,

(b)

have particulars of such land been furnished in Annexure F ?

(11)

(a)

Is exemption claimed under section 73 of the Act in respect of any land included in Annexures A and B and, if so,

(b)

have particulars of such land been furnished in Annexure G ?

(12)

(a)

(i)

Does the person desire to hold any land interspersed among plantations or any land contiguous to any plantation;

(ii)

[***]

(b)

have particulars of the land in respect of which permission is required under section 31 been furnished in Annexure I ?.

I have furnished in Annexure J, the particulars of the land which is desired to be retained within the ceiling area and those of the land which is desired to be declared as surplus.

I hereby declare that to the best of my knowledge and belief, the information furnished in this form and in Annexures A to J is a full and complete information of the entire holding of the person or family specified in item (1) within the State of Tamil Nadu and that the said person or family or any member of the family does not hold any other agricultural land either individually or jointly with others within the State of Tamil Nadu.

Place:

Date:

Signature of the person furnishing the return.

To

The Authorized Officer,

.....

Form 16

Annexure A

Particulars of all land Already Held

Serial numbers

District

Taluk

Village

Survey number

Government or inam

Wet or dry

(1)

(2)

(3)

(4)

(5)

(6)

(7)

If irrigated by Government source of irrigation,

name of such source and whether by direct flow or by lift

Extent

Assessment

Extent in standard acres

Details of building (Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber or young ones)

Remarks

(8)

(9)

(10)

(11)

(12)

(13)

(14)

A.C.

Rs. P.

Notes. -

(1)

This Annexure should contain the particulars of all land held immediately before the acquisition of land referred to in clause (a) or clause (b) of section 21(1).

(2)

The particulars in this Annexure should be furnished under different sections as shown below:-

Section I - Land held as owner.

Section II - Land held as possessory mortgagee.

Section III - Land held as tenant.

Section IV - Land held as intermediary.

Section V - Land held as trust land in which any interest is held.

Section VI - Stridhana land held by female members of the family.

(3)

In the case of land included in sections II, III and IV, the name and address of the possessory mortgagor or the landowner or the tenant, as the case may be, with the particulars of the period of lease, etc., and in the case of trust land, the particulars of interest reserved in favour of the person concerned or of any member of his family, shall be furnished in Column (14).

(4)

If the land for which particulars are furnished above, is not a registered sub-division, boundaries of it for easy identification should also be mentioned in the remarks column.

Place:

Date:

Signature of the person furnishing the return

Form 16

Annexure B

Particulars of Land Acquired In the Manner Specified In Section 21(1) as A Result of Which Ceiling Area Is Exceeded.

Serial numbers

District

Taluk

Village

Survey number

Government or inam

Wet or dry

If irrigated by Government source of irrigation,
name of such source and whether by direct flow or by lift

Extent

Assessment

Extent in standard acres

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)
- (11)

A C

Rs. P.

Details of building (Kachcha or pucca) masonry wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber or young ones)

Date of acquisition

Particulars of manner of acquisition and of the documents, if any, under which acquisition was made

Name and description of the person who held the land immediately before the date of acquisition

Remarks

- (12)
- (13)
- (14)
- (15)
- (16)
- (17)

Notes. -

- (1)

This Annexure should contain the particulars of all land held immediately before the acquisition of land referred to in clause (a) or clause (b) of section 21(1).

- (2)

The particulars in this Annexure should be furnished under different sections as shown below:-

Section I - Land held as owner.

Section II - Land held as possessory mortgagee.

Section III - Land held as tenant.

Section IV - Land held as intermediary.

Section V - Land held as trust land in which any interest is held.

Section VI - Stridhana land held by female members of the family.

- (3)

In the case of land included in sections II, III and IV, the name and address of the possessory mortgagor or the landowner or the tenant, as the case may be, with the particulars of the period of lease, etc., and in the case of trust land, the particulars of interest reserved in favour of the person concerned or of any member of his family, shall be furnished in Column (14).

- (4)

If the land for which particulars are furnished above, is not a registered sub-division, boundaries of it for easy identification should also be mentioned in the remarks column.

Place:

Date:

Signature of the person furnishing the return

Form 16

Annexure C

Particulars of Encumbrances on the Land Included In Annexures A and B.

Serial numbers

District

Taluk

Village

Survey number

Extent

Particulars of encumbrances with the name and
address of the creditors

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

AC

Place:

Date:

Signature of the person furnishing the return

Form 16

Annexure D

Particulars of any Pending Litigation In Respect of the Land Included In Annexures A and B.

Serial numbers

District

Taluk

Village

Survey number

Extent

Particulars of encumbrances with the name and
address of the creditors

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

AC

Place:

Date:

Signature of the person furnishing the return

Form 16

Annexure E

Particulars of Arrears of Land Revenue or Attachment or Restraint on Alienation In Force In Respect of Land Included In Annexure

A and B

Serial numbers

District

Taluk

Village

Survey number

Extent

Amount of arrears

Particulars of proceeding pending for collection

Particulars of attachment

Particulars of restraint on alienation

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

AC

Rs. P

Place:

Date:

Signature of the person furnishing the return

Form 16

Annexure F

Particulars Land Referred to In Annexures A and B Which are Leased out to tenants

Serial numbers

District

Taluk

village

Survey number

Extent

Name and address of the tenant

Date of expiry of tenancy

Rent payable

Whether the tenant himself cultivates the land

leased out and if not, the name of the person cultivating such land

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

AC

Place:

Date:

Signature of the person furnishing the return

Form 16

Annexure G

Particulars of Land Referred to In Annexures A and B In Respect of Which Exemption Is Claimed under Section 73 of the Act

Serial numbers

District

Taluk

Village

Survey number

Extent

Purpose for which the land is now being used and from what date

Clause of section 73 under exemption is claimed

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

AC

Rs. P

Place:

Date:

Signature of the person furnishing the return

Form 16

Annexure H

[Omitted]

Form 16

Annexure I

Particulars of Land Included In Annexures A and B In Respect of Which Permission Is Required under Section 31 of the Act.

Particulars of land-

Serial number

District

Taluk

village

Survey number

Extent

Purpose for which the land is to be used

If the lands are required for extension, or

ancillary purpose of a plantation in existence on 15th February

1970 in any area [***]

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Whether the land is interspersed among such

plantations

Whether the land is contiguous to any such

plantation

(a)

(b)

(2)

If the land is required for dairy farming or live stock breeding-

(a)

Number of heads of cattle owned and their breed.

(b)

Special features of the cattle.

(c)

Status and previous experience of the person.

(d)

Other particulars, if any.

(3)

If the land is required or extension or for ancillary purposes of plantation, extent of plantation in existence on the 15th February 1970.

(4)

[Omitted]

Place:

Date:

Signature of the person furnishing the return.

Form 16

Annexure J

Particulars of Land Desired to be Retained within the Ceiling Area and Particulars of Land Desired to be Declared as Surplus

Serial numbers

District

Taluk

Village

Survey number

Government or inam

Wet or dry

If irrigated by Government source of irrigation,
name of such source and whether by direct flow or by lift

Extent

Assessment

Extent in standard acres

Remarks

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)
- (11)
- (12)

A.C

Rs.P.

Note. - The particulars in this Annexure should be furnished in two parts under different sections as shown below:-

Part A ? . - Lands to be retained within the ceiling area-

Section I - Land held as owner.

Section II - Land held as possessory mortgagee.

Section III - Land held as tenant.

Section IV - Land held as intermediary.

Section V - Land held as trust land in which any interest is held.

Section VI - Stridhana land held by female members of the family.

Part B ? . - Land to be declared as surplus-

Section I - Land held as owner.

Section II - Land held as possessory mortgagee.

Section III - Land held as tenant.

Section IV - Land held as intermediary.

Section V - Land held as trust land in which any interest is held.

Section VI - Stridhana land held by female members of the family.

Place:

Date:

Signature of the person furnishing the return

Form 17

[See rule 26(2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Rules, 1962]

Form of Return to be Furnished under Section 21(2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act
1961 (Tamil Nadu Act

58 of 1961

)

(1)

Name and address of the person by whom the land is held.

(2)

Name and address of the person furnishing the return.

(3)

If the return is not furnished by the person specified in item (1), what is the authority for the person in item (2) to furnish

the return ?

(4)

If the person in item (1) is a member of a family, the particulars of the members of the family.

Name

Age

Relationship to the person

(5)

(a)

Have particulars of all land held by the person been furnished in Annexure A ?

(b)

If the person specified in item (1) is a member of a family have the particulars been furnished in Annexure A in respect of all the lands held by such family and all its members ?

(6)

(a)

Is there any encumbrance on the (and included in Annexure A and, if so,

(b)

have particulars of the encumbrance been furnished in Annexure B ?

(7)

(a)

Is there any litigation pending in respect of any land included in Annexure A and, if so,

(b)

have particulars of the litigation been furnished in Annexure C ?

(8)

(a)

Is there any arrears of land revenue in respect of any land included in Annexure A and, if so,

(b)

Have particulars of such arrears and of the proceedings pending for collection of the arrears been furnished in Annexure D ?

(9)

(a)

Has any land included in Annexure A been leased out to tenants and, if so,

(b)

have particulars of such land been furnished in Annexure E ?

(10)

(a)

Is exemption claimed under section 73 of the Act in respect of any land included in Annexure A and, if so,

(b)

have particulars of such land been furnished in Annexure F ?

(11)

(a)

Does the person desire to hold any land interspersed among plantations or any land contiguous to any plantation, and, if so

(b)

have particulars of the land in respect of which permission is required under section 31 been furnished in Annexure H ?

I have furnished in Annexure I, the particulars of the land which is desired to be retained within the ceiling area and those of the land which is desired to be declared as surplus.

I hereby declare that to the best of my knowledge and belief the information furnished in this form and in the Annexures A to I is a full and complete information of the entire holding of the person or family specified in item (1) within the State of Tamil Nadu and that the said person or family or any member of the family does not hold any other agricultural land either individually or jointly with others within the State of Tamil Nadu.

Place:

Date:

Signature of the person furnishing the return.

To

The Authorized Officer,

Form 17

Annexure A

Particulars of All Land Held Before and After the date of Marriage or Adoption.

Serial numbers

District

Taluk

Village

Survey number

Government or inam

Wet or dry

If irrigated by Government source of irrigation,
name of such source and whether by direct flow or by lift

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Extent

Assessment

Extent in standard acres

Details of building (Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber or young
ones)

Whether the land was held before the date of
marriage or adoption or whether the land is held as a result of
marriage or adoption

Date of marriage or adoption

Remarks

(9)

(10)

(11)

(12)

(13)

(14)

(15)

(16)

A.C.

Rs. P.

Note. -

(1)

The particulars in this Annexure should be furnished under different sections as shown below:-

Section I - Land held as owner.

Section II - Land held as possessory mortgagee.

Section III - Land held as tenant.

Section IV - Land held as intermediary.

Section V - Land held as trust land in which any interest is held.

Section VI-Stridhana land held by female member of the family.

(2)

In the case of land included in Sections II, III and IV, the name and address of the possessory mortgagor or the landowner or the tenant, as the case may be, with the particulars of the period of lease, etc., and in the case of trust lands, the particulars of interest reserved in favour of the person concerned or of any member of his family, shall be furnished in column (16).

(3)

If the land for which particulars are furnished above, is not a registered sub-division, boundaries of it for easy identification should be mentioned in the remarks column.

Place:

Date:

Signature of the person furnishing the return.

Form 17

Annexure B

Particulars of Encumbrances on the Land Included In Annexure A.

Serial numbers

District

Taluk

Village

Survey number

Extent

Particulars of encumbrances with the name and address of the creditors

Remarks

(1)

(2)

(3)

(4)

(5)

16)

(7)

(8)

A.C.

Place:

Date:

Signature of the person furnishing the return

Form 17

Annexure C

Particulars of any Pending Litigation In Respect of the Land Included In Annexure A

Serial numbers

District

Taluk

Village

Survey number

Extent

Particulars of the litigation pending, the case number, the name of the Court and the name of parties

Remarks

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)

A.C.

Place:

Date:

Signature of the person furnishing the return

Form 17

Annexure D

Particulars of Arrears of Land Revenue or Attachment or Restraint on Alienation In Force In Respect of Land Included In Annexure A

Serial numbers

District

Taluk

village

Survey number

Extent

Amount of arrears

Particulars of proceeding for collection

Particulars of attachment

Particulars of restraint on alienation

Remarks

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)
- (11)

AC

Place:

Date:

Signature of the person furnishing the return

Form 17

Annexure E

Particulars of Lands Leased out to Tenants.

Serial numbers

District

Taluk

Village

Survey number

Extent

Name and address of the tenant

Dale of expiry of tenancy

Rent payable

Whether the tenant himself cultivates the land

leased out and if not, the name of the person cultivating such
land

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

AC

Place:

Date:

Signature of the personfurnishing the return

Form 17

Annexure F

Particulars of Land In Respect of Which Exemption Is Claimed under Section 73 of The Act

Serial numbers

District

Taluk

Village

Survey number

Extent

Purpose for which the land is now being used and
from what date

Clause of section 73 under which exemption is
claimed

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

A.C.

Place:

Date:

Signature of the personfurnishing the return

Form 17

Annexure G

[Omitted]

Form 17

Annexure H

Particulars of Land For Which Permission Is Required under Section 27 or 31 of the Act

Particulars of land-

Serial number

District

Taluk

village

Survey number

Extent

Purpose for which the land is to be used

If the lands are required for extension, or

ancillary purpose of a plantation in existence on 15th February

1970 in any area [***]

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Whether the land is interspersed among such plantations

Whether the land is contiguous to any such plantation

(a)

(b)

(2)

If the lands are required for dairy farming or livestock breeding-

(a)

Number of heads of cattle owned and their breed.

(b)

Special features of the cattle.

(c)

Status and previous experience of the person.

(d)

Other particulars, if any.

(3)

If the lands are required for extension or for ancillary purposes of plantation, extent of plantation in existence OH the 15th February 1970

Place:

Date:

Signature of the personfurnishing the return

Form 17

Annexure I

Particulars of Land Desired to be Retained Within the Ceiling Area and Particulars of Land Desired to be Declared as Surplus.

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

If irrigated by Government source of irrigation,
name of such source and whether by direct flow or by lift

Extent

Assessment

Extent in standard acres

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

A.C

Rs. P.

Note. - The particulars in this Annexure should be furnished in two parts under different sections as shown below:-

Part A ? .- Land to be retained within the ceiling area-

Section I - Land held as owner.

Section II - Land held as possessory mortgagee.

Section III - Land held as tenant.

Section IV - Land held as intermediary.

Section V - Land held as trust land in which any interest is held.

Section VI-Stridhana land held by female member of the family.

Part B ? .- Land to be declared as surplus-

Section I - Land held as owner

Section II - Land held as possessory mortgagee.

Section III - Land held as tenant.

Section IV - Land held as intermediary.

Section V - Land held as trust land in which any interest is held.

Section VI-Stridhana land held by female member of the family.

Signature of the person furnishing the return.

Form 18

[Omitted]

Form 19

[See rule 30 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Application for Acquisition of Land for Extension or for Ancillary Purposes of Plantation under Section 30 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

)

1. Name and address of the applicant.

2. Particulars of the land already held by the applicant and the members of the family as on the date of application -

Serial numbers

District

Taluk

village

Survey number

Wet or dry

Extent

Assessment

Name of crop raised

Nature of interest held by the applicant on the

land

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C

Rs. P.

Note. - The particulars in this item should be furnished under different sections as shown below:-

Section I - Under plantations in any hill area.

Section II - Under plantations in any area other than a hill area.

Section III - For agricultural purposes other than plantations.

3. Particulars of land proposed to be acquired by the applicant.

S.No.

District

Taluk

village

Survey number

Wet or dry

Extent

Assessment

Present state of the land (cultivated or lying waste).

Whether inter-persed among plantations or continuous to any palmation.

The name and address of the person from whom the land is to be acquired

Remarks

(1)

(2)

(3)

(4)

(5)
16)
(7)
(8)
(9)
(10)
(11)
(12)
A.C

Rs. P.

Note. - The particulars in this item should be furnished under different sections as shown below:-

Section I - For extension of plantation.

Section II - For factories, labour quarters, play-grounds, hospitals, schools and other ancillary buildings.

Section III - For other ancillary purposes of plantation.

4. Any other particulars, including the details of the programme, if any, for the extension of the plantation.

I hereby declare that what is stated above is true to the best of my knowledge and belief. A site plan drawn to scale, showing the existing area under plantation and that proposed to be acquired is enclosed.

Place:

Date:

Signature

Form 20

[Omitted]

Form 21

[See rule 40(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Rules, 1962]

Application of Claim for Compensation under Section 50(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961

To

The Authorized Officer,.....

I/We, prefer my/our claim for payment of compensation in respect of the undermentioned surplus land notified under section 18(1). The prescribed particulars are furnished in the Schedule appended.

I/We do hereby declare that the information furnished in the Schedule appended is correct to the best of my/our knowledge and belief.

Place:

Signature.

Date:

Address.

Schedule 3

I. Name and address of the claimant.

II. Particulars of land for which compensation is claimed-

Serial numbers

Name of the holder of the land

District

Taluk

village

Survey number

Boundaries

Government of inam

Wet of dry and in the case of land in the

kanyakumari district and the Shencottah taluk of the

Tirunive-lveli district, also the source of irrigation

Extent

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)
- A.C

[Land revenue]

[For lands in Kanyakumari district and Shencottah taluk of the Tirunelveli district, the land revenue should be calculated under clause (b) of the Explanation to paragraph 3 of Part 1 of Schedule III to the Act. Nature of interest held in respect of land as on the date of acquisition.]

Cesses

Additional surcharge

Charge of water

Particulars of well, building, tree machinery,
plant or apparatus, plant or apparatus, if any, on the land

If encumbered as on the date of publication of
notification under section 18(1) particulars of encumbrance with
the name and address of the creditor

- (a)
- (b)
- (c)
- (d)
- (11)
- (12)
- (13)
- (14)

If mortgagee or charge holder

If tenant or sub-tenant

If intermediary

- (i)
- (ii)
- (iii)

Name and address of the mortgagor or owner.

Particulars of mortgage or of charge

Name and address of the landowner or
intermediary.

Period of contract, of tenancy, and particulars
of annual rent paid (in kind or in cash.)

Name and address of the landowner and of the
person cultivating the land Amount of annual rent received by the
intermediary. Amount payable to the land owner.

If landowner

If limited owner or maintenance-holder,
particulars of interest held.

Name and address of the tenant.

Particulars of tenancy (Amount of rent received

and period of contract of tenancy)

Other categories with particulars thereof.

(iv)

(v)

(vi)

Name of crop or crops usually raised on the land

Normal gross produce in a normal year in respect
of the land (in kind or in cash)

Value of straw or stalk of all the crops
cultivated on the land

Net average annual income from the land ,in money
value

Remarks

(15)

(16)

(17)

(18)

(19)

Rs. P.

III. Particulars of compensation claimed-

(1)

(a)

Aggregate net annual income from the land (in money value).

(b)

Rate of compensation.

(c)

Amount of compensation for the land.

(d)

The amount of land revenue or portion thereof in respect of the land, if any, has been assigned in his favour.

(e)

The amount of proportionate quit-rent, jodi, kattubadi or other amount of a like nature payable by such person to the Government.

(f)

Amount of compensation claimed under Part II of Schedule III.

(2)

Compensation claimed in respect of trees, buildings, machinery, plant or apparatus, if any, acquired-

(a)

Description.

(b)

Value claimed, with details as to the basis of the valuation.

(c)

Total value claimed.

(3)

Total compensation [item 1(c) plus item 1(f) plus item 2(c) above].

(4)

Compensation payable to tenant, if any, under section 54.

(5)

Net compensation [item (3) minus item (4) above].

IV. Particulars of the members of the family and also others, if any, among whom the compensation claimed has to be apportioned.

Full name and address

Age

Relationship

Amount or rate of apportionment to be made

V. The names and addresses of the legal heirs of the claimant.

Signature of the claimant,

Note. - The application shall be signed-

(a)

in the case of any individual, by the individual himself or by any person authorized by him in writing in this behalf;

(b)

in the case of a person who is a minor, lunatic, idiot, or is subject to a like disability, by the guardian, manager or other person in charge of such person or of the property of such person;

(c)

in the case of a family, by the person in management of such family or of the property of such family;

(d)

in the case of a company or other corporate body, by any person competent to act for such company or body in this behalf.

Form 22

[See rule 45(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Draft Compensation Assessment Roll Under Section 50(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling On Land) Act, 1961 (Tamil Nadu Act

58 of 1961

)

D. C. A. Roll No dated.....

Part I ? I. Name and address of the owner of the surplus land acquired under section 18(1).

II. The area of the land acquired and the net annual income from the land exclusive of the value of tree, building, machinery, plant or apparatus acquired.

Serial numbers

District

Taluk

village

Survey number

Boundaries

Government or inam

Wet of dry and in the case of land in the

kanyakumari district and the Shencottah taluk of the

Tirunivelveli district, also the source of irrigation

Extent

Name of the registered holder or occupier

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

A.C.

Fair rent fixed for the land

* Land revenue payable for the land (inclusive of

cess additional surcharge and charge for water)
 Net annual income from the land [column (11)
 minus column(12)]
 Name and address of the person or persons
 interested
 Nature of the interest of each such person
 Value of interest of each person
 Relative priority of each person and the amount
 due

Remarks

(11) Rs. P.

(12) Rs. P.

(13) Rs. P.

(14)

(15)

(16) Rs. P.

(17)

(18)

* For lands in Kanyakumari district and Shencottah taluk of the Tirunelveli district, the land revenue should be calculated under clause (b) of the Explanation to paragraph 3 of Part 1 of Schedule III to the Act.

1. Trees

(a)

Village.

(b)

Survey number.

(c)

Type and number of trees.

(d)

Compensation payable.

(e)

Remarks.

2. Buildings

(a)

Village.

(b)

Survey number.

(c)

Temporary or permanent.

(d)

Compensation payable.

(e)

Remarks.

3. Machinery, plant or apparatus

(a)

Village.

(b)

Survey number.

(c)

Description.

(d)

Present market value.

(e)

Remarks.

IV. Compensation payable for the land referred to in item II above as laid down in paragraph 6 of Part I of Schedule III to the Act-

Rs. P.

(1)

The total net annual income" from the land referred to in item II above.

(2)

(a)

For the first sum of Rs. 5,000 or any portion thereof of the net annual income noted against sub-item (1) above-Twelve times such sum or portion.

(b)

For the next sum of Rs. 5,000 or any portion thereof of the net annual income noted against sub-item (1) above-Eleven times such sum or portion.

(c)

For the next sum of Rs. 5,000 or any portion thereof of the net annual income noted against sub-item (1) above-Ten times such sum or portion.

(d)

For the balance of the net annual income noted against sub-item (1) above-Nine times such balance.

Total -----

(3)

Total valuation on account of trees, buildings, machinery, plant or apparatus acquired-vide paragraph 7 of Part I of Schedule III to the Act and referred to in item III above.

(4)

Total compensation [total of sub-items (2) and (3)].

(5)

Compensation payable to tenant, if any, under section 54.

(6)

Net compensation [sub-item (4) minus sub-item (5)].

(7)

(a)

The amount of land revenue or portion thereof in respect of the land, if any, which has been assigned in favour of any person,

(b)

The amount of proportionate quit-rent, jodi, kattubadi, or other amount of a like nature payable by such person to the Government.

(c)

Compensation payable under Part II of Schedule III.

Total amount of compensation payable for all interests in the land.

[Total of sub-item (6) and (7) (c)]

[Rupees.....(in words).]

V. Date from which interest is payable under section 55 (2).

Part II ? I. The persons or person who are entitled to the compensation and the amount to which each person is entitled.

Serial number

Name and address of the person

Amount of compensation

Remarks

(1)

(2)

(3)

(4)

Rs.P.

Note. - In the case of limited owner or maintenance-holder on the surplus land acquired, the manner of payment of compensation should be indicated in the remarks column.

Place:

Date:

Signature of the Authorized Officer.

Form 23

[See rule 45(2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Statement Accompanying the Draft Compensation Assessment Roll under Section 50(3)(A)(I) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land), Act 1961 (Tamil Nadu Act 58 of 1961

)

Whereas the land included in the draft compensation assessment roll in Form 22 (enclosed herewith) has been acquired for a public purpose by the Government under section 18 (1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), I, .Authorized Officer,.....after full enquiry into the case and on due consideration of the various circumstances connected therewith, have determined the amount of compensation payable under section 50 and I hereby declare that the amount of compensation specified in the draft compensation assessment roll, is the entire amount of compensation payable for all the interests in the land and that subject to the other provisions of the Act, the persons named therein are the only persons who are entitled to the compensation in the proportion stated therein.

Place:

Date:

Signature of the Authorized Officer.

Form 24

[See rule 45(2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Notice under Section 50(3)(A)(ii) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land), Act 1961 (Tamil Nadu Act

58 of 1961

)

Notice is hereby given that the amount of compensation payable for the surplus land acquired by the Government and as determined under section 50(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land), Act 1961 (Tamil Nadu Act

58 of 1961

) is specified in the draft compensation assessment roll enclosed. Any person, who has any objection to any entry in the draft compensation assessment roll, may prefer his objection in writing before the authorized officer within thirty days from the date of publication of the said draft in the [Fort St. George Gazette,]

[Now Tamil Nadu Government Gazette.]

namely

Objections received within the due date will be enquired into at....(time) *on....(date) at (place) when the objector may appear in person or by authorized agent and adduce any oral or documentary evidence in support of the objections.

Place:

Date:

Signature of the Authorized Officer.

* Should be after sixty days of the publication of the draft compensation assessment roll.

Form 25

[See rule 48 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Form of Certificate to be Endorsed Under Section 50(8) of The Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961

(Tamil Nadu Act

58 of 1961

)

I, authorized officer,...hereby certify that this compensation assessment roll No.....dated.....was published finally on.....

Place:

Date:

Signature of the Authorized Officer.

Form 26

[See rule 49(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Application of Claim by Mortgagee or Charge Holder Under Section 51(1) of The Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961

(Tamil Nadu Act

58 of 1961

).

(1)

Name and address of the claimant.

(2)

Particulars of land to which the claim relates.

Serial numbers

Name and address of the mortgage or owner of land

District

Taluk

village

Survey number

Boundaries

Government or inam

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Wet or dry

Extent

Amount and particulars of mortgage of charge

Particulars of notification under section 18(1)

Amount claimed by the mortgage or charge holder

Remarks

(9)

(10)

(11)

(12)

(13)

(14)

A.C.

Rs. P.

Rs. P.

(3)

Any other particulars which the claimant desires to furnish.

I hereby declare that the information furnished above is correct to the best of my knowledge and belief.

Place:

Date:

Signature of the claimant.

Form 27

[See rule 49(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Notice of Enquiry on Claims Preferred Under Section 51(1) of The Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961

(Tamil Nadu Act

58 of 1961

)

The claim application, dated filed by.....of..... under section 51(1) will be heard by the Authorized Officer,.....at(time) on.....(date)at.....(place).

You may appear in person or by authorized agent and make any representation you may consider necessary or send your representation by registered post to the Authorized Officer, on or before the said date.

Place:

Date:

Signature of the Authorized Officer.

To

The Petitioner.

The Respondents.

Form 28

[See rule 50 (1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Form of Return to be Furnished by Cultivating Tenant under Section 61(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961

(Tamil Nadu Act

58 of 1961

).

(1)

Name and address of the cultivating tenant.

(2)

Particulars of the land held-

(a)

As owner-

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Extent

Assessment

Extent in standard acres

Boundaries

Details of building (Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber or young ones)

Remarks

(8)

(9)

(10)

(11)

(12)

(13)

(14)

A.C.

Rs. P.

(b)

As cultivating tenant [as defined in section 3 (10) read with the Explanation to section 60]

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

Extent

Rate of assessment per acre

Extent in standard acres

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

A.C.

Rs. P.

Boundaries

Details of building (Kachcha or pucca), masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber, or young ones)

Name and address of the landowner

Name and address of the intermediary, if any

Annual rent payable to the landowner or tire

Annual rent payable to the landowner by the intermediary, if known

Period of contract of tenancy

Remarks

- (11)
- (12)
- (13)
- (14)
- (15)
- (16)
- (17)
- (18)
- (19)
- (3)

Particulars of land which the cultivating tenant desires to retain within the cultivating tenant's ceiling area out of the lands held by him as cultivating tenant.

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

Extent

Assessment

Extent in standard acres

Remarks

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)
- (11)

A.C.

Rs. P.

I hereby declare that to the best of my knowledge and belief, the information furnished in this form is a full and complete information of my entire agricultural holding in the State as owner and cultivating tenant and that I do not own or hold as cultivating tenant any other agricultural land within the State of Tamil Nadu than what is declared above.

Place:

Date:

Signature.

Note. - (1) The return shall be furnished-

(a)

in the case of any individual, by the individual himself or any person authorized by him in writing in this behalf;

(b)

in the case of a person who is a minor, lunatic, idiot or is subject to a like disability, by the guardian, manager or other person in charge of such person or of the property of such person;

(c)

in the case of a company or other corporate body, by any person competent to act for such company or body in this behalf; and

(d)

in the case of a family, by the person in management of such family or of the property of such family.

Form 29

[See rule 50(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Form of Notice Under Section 61(2) of The Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961(Tamil Nadu Act

58 of 1961

)

To

.....

Name of person and address.

[Whereas you have failed to furnish a return under section 61(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), in Form 28 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962;]

[Strike out the paragraph not applicable.]

You are hereby required to prepare a true and correct return in the said form and deliver it to me or cause it to be delivered at my office duly signed by you on or before.....(here enter the date, month and year) failing which you will be liable to a penalty under section 85 of the said Act.

[Whereas the return furnished by you under section 61(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

) is [incomplete/incorrect]

[Strike out the paragraph not applicable.]

as detailed below]

(here enter briefly the details how the return is incomplete or incorrect).

You are hereby required to furnish| the following additional particulars to make the return completethe true particulars in respect of the following matters

(here specify the matters).....on before.....(here enter the date, month and year) failing which you will be liable to a penalty under section 85 of the said Act.

Given under my hand and seal, this the day of 20.....

Place:

Date:

Seal

Signature of the Authorised officer

Form 30

[See rule 51(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Statement of Land Held by Cultivating Tenant

1. Name and address of the cultivating tenant.

2. Particulars of the land held by him -

(a)

As owner

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

(1)

(2)

(3)
(4)
(5)
(6)
(7)
Extent
Assessment
Extent in standard acres
Boundaries
Details of building (Kachcha or pucca) masonry
wells (in use or not in use) tube wells in use
Number of trees (fruit trees, or timber or young
ones)
Remarks
(8)
(9)
(10)
(11)
(12)
(13)
(14)
A .C
Rs. P.
(b)
As cultivating tenant as defined in section 3 (10) read with the Explanation to section 60
Serial numbers
District
Taluk
village
Survey number
Government or inam
Wet or dry
Extent
Assessment
Extent in standard acres
Boundaries
(1)
(2)
(3)
(4)
(5)
(6)
(7)
(8)
(9)
(10)
(11)
A.C
Rs. P.
Details of building (Kachcha or pucca), masonry
wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber, or young ones)

Name and address of the landowner

Name and address of the intermediary ,if any

Annual rent payable to the landowner or the intermediary

Annual rent payable to the landowner by the intermediary if known

Period of contract of tenancy

Remarks

(12)

(13)

(14)

(15)

(16)

(17)

(18)

(19)

3. Particulars of land which the cultivating tenant desires to retain within the cultivating tenant's ceiling area out of the lands held by him as cultivating tenant.

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

Extent

Assessment

Extent in standard acres

Boundaries

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A .C

Rs. P.

4. Particulars of the lands in excess of the cultivating tenant's ceiling area and proposed to be taken possession of by the authorized officer on behalf of the Government under section 62

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

Extent

Assessment

Extent in standard acres

Boundaries

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C.

Rs. P.

Place:

Date:

Signature of the Authorised Officer.

Form 31

[See rule 51(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

To

(Here enter the name and address of the cultivating tenant or the landowner concerned).

A statement in Form 30 is enclosed. Any objection to any entry in the said statement may be preferred to the authorized officer within thirty days from the date of service of this notice.

Station:

Date:

Signature of the Authorised Officer.

Form 32

[See rule 51 (2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Notice Intimating Decision to Take Possession of Land In Excess of the Cultivating Tenant's Ceiling Area by the Authorized Officer on Behalf of Government

(1)

Name of the cultivating tenant and address.

(2)

The particulars of land proposed to be taken possession of by the authorised officer under section 62 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

) on behalf of the Government, are furnished below:-

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

Extent

Assessment

Extent in standard acres

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)

A.C.

Rs. P.

Boundaries

Details of building (Kachcha or pucca), masonry wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber, or young ones)

Name and address of the landowner

Name and address of the intermediary

Annual rent payable to the landowner or the intermediary

Annual rent payable to the landowner by the intermediary, if known

Period of contract of tenancy

Remarks

- (11)
- (12)
- (13)
- (14)
- (15)
- (16)
- (17)
- (18)
- (19)
- (3)

Notice is hereby given that the lands will be taken possession of on or after*.....

Station:

Date:

Signature of the Authorised Officer.

*The notice shall be served allowing not less than three months time and the notice shall expire with the end of the agricultural year in which the notice is given.

Form 33

[See rule 53(2) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962]

Notice Inviting Applications for Distribution of Land Under Section 64 of The Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

)

It is hereby notified that the land specified in the Schedule....will be taken possession of by the Authorized Officer, on behalf of the Government under the provisions of section 62 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

) on the.....day of the month of.....20..and that applications for the allotment of that land will be considered by the Authorized Officer,..... till.....(date). Persons desirous of applying for allotment may present their applications in person or send them by registered post to the said Authorized Officer, within the date specified above.

2. Landless persons or persons holding land below the cultivating tenant's ceiling area alone are eligible for the allotment of the land.

3. The allotment will be subject to the terms and conditions specified below:-

(Here enter the terms and conditions)

The Schedule

Serial numbers

District

Taluk

village

Survey number

Wet or dry

Extent

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Assessment

Boundaries

Details of building (Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber or young ones)

Name of crop,if any, usually raised on the land

Amount of annual rent payable for the land

Remarks

(8)

(9)

(10)

(11)

(12)

(13)

(14)

A.C.

Rs. P.

Station:

Date:

Signature of the Authorised Officer.

Form 34

[See rules 53(3) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Rules, 1962]

Application for Distribution of Possession of Land under Section 64 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961(Tamil Nadu Act

58 of 1961

)

1. Name and address of the applicant.

2. Particulars of land applied for allotment.

Serial numbers

District

Taluk

village

Survey number

Boundaries

Wet or dry

Extent

Assessment

Extent in standard acres

Purpose for which it is required

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

A.C.

Rs. P.

3. Particulars of land, if any, held by the applicant and the other members of his family.

4. Whether the applicant was dispossessed of his holding by virtue of the provisions of the Act; if so, particulars of the holding from which he was dispossessed with full details of land.

Serial numbers

District

Taluk

village

Survey number

Boundaries

Wet or dry

Extent

Assessment

Extent in standard acres

Nature of interest held in the land

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

A.C.

Rs. P.

(5)

Other particulars, if any, which the applicant desires to furnish.

I hereby declare that the particulars furnished in the application are to the best of my knowledge and belief are true and correct.

I further declare that, in the event of the land being allotted to me, I shall abide by the terms and conditions of the allotment and also all the provisions pertaining thereto contained in the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Rules, 1962.

Place:

Date:

Signature of the applicant.

Form 35

[See rule 55(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Rules, 1962]

Form of Return to be Furnished by Cultivating Tenant on Acquisition by Lease of any Land In Excess of the Cultivating Tenant's Ceiling Area under Section 69(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961(Tamil Nadu Act

58 of 1961

)

(1)

Name and address of the cultivating tenant.

(2)

Particulars of the land held by the cultivating tenant as owner.

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Extent

Assessment

Extent in standard acres

Boundaries

Details of building (Kachcha or pucca) masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber or young ones) payable for the land

Remarks

(8)

(9)

(10)

(11)

(12)

(13)

(14)

A.C.

Rs. P.

(3)

Particulars of the land held by the cultivating tenant as cultivating tenant as defined in section 3(10) read with the Explanation to section 60-

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

Extent

Assessment

Extent in standard acres

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C.

Rs. P.

`

Details of building(Kachcha or pucca), masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber, or young ones)

Name and address of the person who leased out the land and in the nature of his interest in it

Particulars of document, if any, for the lease

and period of lease and amount of annual rent(in cash or in kind)

Name and address of the intermediary

Remarks

(11)

(12)

(13)

(14)

(15)

(16)

(5)

Particulars of the land which the cultivating tenant desires to retain within the cultivating tenant's ceiling area out of the land held by him as cultivating tenant.

Serial numbers

District

Taluk

village

Survey number

Government or inam

Wet or dry

Extent

Assessment

Extent in standard acres

Boundaries

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C.

Rs. P.

Details of building (Kachcha or pucca), masonry

wells (in use or not in use) tube wells in use

Number of trees (fruit trees, or timber, or young ones)

Name and address of the person who leased out the land and in the nature of his interest in it.

Particulars of document, if any, for the lease and period of lease and amount of annual rent(in cash or in kind)

Name and address of the intermediary, if any

Remarks

Remarks

(11)

(12)

(13)

(14)

(15)

(16)

(17)

I hereby declare that to the best of my knowledge and belief, the information furnished in this form is a full and complete information of my entire holding as owner or cultivating tenant in the State and that I do not own or hold as cultivating tenant any other agricultural land within the State of Tamil Nadu than what is declared above.

Place:

Date:

Signature.

Note. - The return shall be furnished-

(a)

in the case of any individual, by the individual himself or any person authorized by him in writing in this behalf;

(b)

in the case of the person who is a minor, lunatic, idiot or is subject to a like disability, by the guardian, manager or other person in charge of such person or of the property of such person;

(c)

in the case of a company or other corporate body, by any person competent to act for such company or body in this behalf; and

(d)

in the case of a family, by the person in management of such family or of the property of such family

Form 36

[See rule 56(1) of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Rules, 1962]

Application of an Industrial or Commercial Undertaking under Sub-Section (1) of Section 37-A of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), for Permission to Hold or Acquire Land In Excess of the Ceiling Area.

(1)

Name and address of the industrial or commercial undertaking.

(2)

The chief product or products that are manufactured or dealt with by the undertaking.

(3)

The particulars of all lands held or to be acquired by the undertaking.

Serial numbers

District

Taluk

village

Government or inam

Wet or dry

Survey number

Extent

Assessment

Extent in standard acres

The purpose for which the land is used or

proposed to be acquired

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

(12)

A.C.

Rs. P.

A.C.

(4)

Lands which are used or required for non-agricultural purposes.

Survey number

Extent in ordinary acres

Assessment

Extent in standard acres

Lands for which permission is required

(1)

(2)

(3)

(4)

(5)

A. C.

Rs.P.

A. C.

(5)

Lands for which permission is required.

TABLE

Survey number

Extent in ordinary acres

Assessment

Extent in standard acres

Any other remarks

(1)

(2)

(3)

(4)

(5)

A. C.

Rs.P.

I hereby declare that the particulars furnished in the application are, to the best of my knowledge and belief, true and correct.

I further declare that in the event of the permission applied for being granted, I shall abide by the conditions subject to which the permission is granted and the provisions contained in the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), and the rules made thereunder. I shall also abide by such other conditions as the Government may, by general or special order, specify.

Place:

Date:

Signature of the person competent to act on behalf of the undertaking.

Form 38

[See rule 64 of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land Rules, 1962]

Application for Permission by Public Trust under Sub-Section (1) of Section 37-B of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

38 of 1961

)

(1)

Name and address of the applicant-Public trust.

(2)

Date of the establishment of the public trust (Evidence to be enclosed).

(a)

Whether it is a registered public trust ? If so, number and reference.

(b)

Name or names of persons constituting the governing body.

(c)

Whether it comes under Societies Registration Act, Companies Act ? If so, details.

(d)

Whether the members have interests in any other public trust (institutions/hospital) ?

If so, details.

(3)

Objects of the public trust (Evidence to be enclosed).

(4)

Name(s) of educational institution(s) and/hospital(s) run or proposed to be run by the public trust (Evidence to be enclosed).

(5)

Date or probable date of establishment of the educational institution(s)/ hospital(s) proposed to be run by the public trust (Evidence to be enclosed).

(6)

Objects of the hospital(s) proposed to be run by the public trust (Evidence to be enclosed).

(a)

Whether the accounts are audited by the authorised auditor ? Register number of the auditor.

(7)

If it is for expansion of any existing educational institution or hospital-

(a)

is it by way of-

(i)

addition to educational institution or hospital ?

or

(ii)

alteration of educational institution or hospital ?

or

(iii)

improvement to the educational institution or hospital ?

(b)

the purpose for such an expansion ?

(c)

the probable date of completion of the expansion ?

(8)

Particulars of lands held by the public trust

(a)

held as on 1st March 1972 (Evidence to be enclosed).

District... Taluk....Village....

Serial numbers

Survey number

Government or inam

Classification

Total registered extent

Assessment

Extent actually held out of the registered extent

Assessment for the extent in column (7)

Extent in standard acres for the extent in

column(7)

Purpose for which the land is used

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C.

Rs. P.

A.C.

Rs. P.

Note. - (1) Extent utilised for the establishment or expansion of any hospital shall be indicated in the remarks column against the respective Survey Numbers.

(2)

If the holdings of the public trust are already attracted by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), the result of the proceedings under the Act shall be indicated in the remarks column.

(b)

Extent acquired by the public trust after 1st March 1972 and up to the date of publication of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1987 (Tamil Nadu Act 29 of 1987) in the Tamil Nadu Government Gazette (Evidence to be enclosed).

District.... Taluk.... Village....

Serial numbers

Survey number

Government or inam

Classification

Total registered extent

Assessment

Extent actually held out of the registered extent

Assessment for the extent in column (7)

Extent in standard acres for the extent in

column(7)

Purpose for which the land is used

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C.

Rs. P.

A.C.

Rs. P.

Note. - (1) Extent utilised for the establishment or expansion of any hospital shall be indicated in the remarks column against the respective Survey Numbers.

(2)

If the holdings of the public trust are already attracted by the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

), the result of the proceedings under the Act shall be indicated in the remarks column.

(b)

Extent acquired by the public trust after 1st March 1972 and up to the date of publication of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1987 (Tamil Nadu Act 29 of 1987) in the Tamil Nadu Government Gazette (Evidence to be enclosed).

District....Taluk....Village....

Serial numbers

Survey number

Government or inam

Classification

Total registered extent

Assessment

Extent actually held out of the registered extent

Assessment for the extent in column (7)

Extent in standard acres for the extent in column(7)

Purpose for which the land is used

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C.

Rs. P.

A.C.

Rs. P.

Note. - (1) Extent utilised for the establishment or expansion of any hospital shall be indicated in the remarks column against the respective Survey Numbers.

(2)

The result of the proceedings initiated under section 20-A of the Act in respect of these lands shall be indicated in the remarks column.

(c)

Total extent proposed to be acquired by the public trust on or after the date of publication of the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Amendment Act, 1987 (Tamil Nadu Act 29 of 1987) in the Tamil Nadu Government Gazette (Evidence to be enclosed).

District....Taluk....Village.....

Serial numbers

Survey number

Government or inam

Classification

Total registered extent

Assessment

Extent actually held out of the registered extent

Assessment for the extent in column (7)

Extent in standard acres for the extent in

column(7)Purpose for which the land is used

Purpose for which the land

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C.

Rs. P.

A.C.

Rs. P.

Note. - (1) Extent proposed to be utilised for the establishment and expansion of any' hospital shall be indicated in the remarks column against the respective Survey Numbers.

(d)

Total of the extents, held and proposed to be acquired by the public trust- A C

(i)

as per (a) above

(ii)

as per (b) above

(iii)

as per (c) above

(iv)

Total

[Total of sub-items (a), (b) and (c)]

(9)

(a)

Particulars of lands in which the public trust is carried on for educational or hospital purposes.

District....Taluk....Village.....

Serial numbers

Survey number

Government or inam

Classification

Total registered extent

Assessment

Extent actually held out of the registered extent

Assessment for the extent in column (7)

Extent in standard acres for the extent in column

(7)

Purpose for which the land is used

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C.

Rs. P.

A.C.

Rs. P.

Note. - (1) Extent utilised for the establishment or expansion of any educational institution or hospital shall be indicated in the remarks column against the respective Survey Numbers.

(b)

Particulars of land in which the public trust proposed to be carried on for educational or hospital purposes.

District..... Taluk..... Village.....

Serial numbers

Survey number

Government or inam

Classification

Total registered extent

Assessment

Extent actually held out of the registered extent

Assessment for the extent in column (7)

Extent in standard acres for the extent in

column(7)Purpose for which the land is used

Purpose for which the land is used

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C.

Rs. P.

A.C.

Rs. P.

Note. - Extent proposed to be utilised by the public trust for carrying on for educational or hospital purposes shall be indicated in the remarks column against the respective survey numbers,

(c)

Total of the extent of lands in which the public trust is or is proposed to be carried on for educational or hospital purposes [total of sub-items (a) and (b)]

O.A

S.A.

(i) As per sub-item (a)

(ii) As per sub-item (b)

(10)

(a)

Particulars of lands utilised by the applicant public trust for the construction of quarters and playgrounds and parks in connection with educational or hospital purposes.

District.... Taluk.... Village....

Serial numbers

Survey number

Government or inam

Classification

Total registered extent

Assessment

Extent actually held out of the registered extent

Assessment for the extent in column (7)

Extent in standard acres for the extent in column(7)

Purpose for which the land is used

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

(10)

(11)

A.C.

Rs. P.

A.C.

Rs. P.

Note. - (1) Extent utilised by the public trust of the construction for quarters and playgrounds and parks in connection with educational or hospital purposes shall be indicated in the remarks column against the respective Survey Numbers.

(b)

Particulars of lands proposed to be utilised by the public trust for the construction of quarters, playgrounds and park in connection with educational and hospital purposes.

District....Taluk....Village.....

Notes. - (1) Extent utilised for the establishment or expansion of any hospital shall be indicated in the remarks column against the respective Survey Numbers.

(2)

The result of the proceedings initiated under section 20-A of the Act in respect of these lands shall be indicated in the remarks column.

(c)

Total of the extents of land utilised and proposed to be utilised by f the public trust for the construction of quarters, playgrounds and park in connection with the educational or hospital purposes.

O.A.

S.A.

(i) As per sub-item (a) above

(ii) As per sub-item (b) above

(iii) Total

(11)

(a) Number of students/inmates/etc., etc., in existing-

(i) educational institution

(ii) hospital

(iii) Total

(b) Approximate number of students/inmates/etc, etc., in proposed-

(i) educational institution

(ii)hospital

(iii) Total

(c) Anticipated number of additional students/inmates/etc, etc., with the expansion of the existing-

(i) educational institution

(ii) hospital

(iii) Total

(12)

Norms with regard to extent in acres as prescribed by the respective head of the department or the department of Government [quote the Act/ Rule/Law, Code (Rules, G.O. ^^B currently in force)]-

(i) educational institution

(ii) hospital

(iii) Total

(13)

Extent required as per the norms for-

(i) educational institution

(ii) hospital

(iii) Total

(14)

Extent utilised already for-

(i) educational institution

(ii) hospital

(iii) Total

(15)

Extent proposed to be utilised for-

(i) educational institution

(ii) hospital

(iii) Total

(16)

Total of the extents utilised and proposed to be utilised for-

(i) educational institution

(ii) hospital

(iii) Total

(17)

Reasons for difference, if any, between the extent shown against item numbers (13) and (16).

(18)

Is the combined sketch showing the location of the existing or proposed educational institution or hospital in different colours enclosed.

(19)

Any other remarks.

I hereby declare that the particulars furnished in the application are to the best of my knowledge and belief, true and correct.

I further declare that, in the event of the permission applied for being granted, I shall abide by the conditions subject to which the permission is granted and the provisions contained in the Tamil Nadu Land Reforms (Fixation of Ceiling on Land) Act, 1961 (Tamil Nadu Act

58 of 1961

) as amended and the rules made thereunder. I shall also abide by such other conditions as the Government may, by general or special order, specify.

Place:

Signature of the person competent to act on behalf of the applicant-public trust.

Related AI tags, queries and research notes

Translation